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**MEMORANDUM  
AND  
ARTICLES OF ASSOCIATION  
OF  
GRANULES INDIA LIMITED**

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Company No. 01-12471

FRESH CERTIFICATE OF INCORPORATION CONSEQUENT  
ON THE CONVERSION UNDER SECTION 31/44 OF THE  
COMPANIES ACT, 1956 (1 OF 1956).

In the Office of the Registrar of Companies, Andhra Pradesh.  
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IN THE MATTER OF GRANULES INDIA PRIVATE LIMITED

I hereby certify that Granules India Private Limited  
\_\_\_\_\_ which was originally incorpo-  
rated on 18th day of March, 1991 under the  
name Granules India Private Limited  
having duly passed the necessary Special Resolution on  
10th day of November, 1992 in terms of  
Section 31(1)/44 of the Companies Act, 1956 the name of  
the Company is this day changed to GRANULES INDIA LIMITED

\_\_\_\_\_.  
This Certificate is issued pursuant to Section 23(1) of the  
said Act.

Given under my hand at HYDERABAD this the 8th  
day of February One thousand Nine hundred  
and Ninety Three.



N.R. GRIDHARAN  
(N.R. GRIDHARAN)  
REGISTRAR OF COMPANIES  
ANDHRA PRADESH, HYDERABAD.





फॉर्म आर्. आर्.  
Form I.R.

निगमन पर प्रमाण-पत्र

# CERTIFICATE OF INCORPORATION

ता. 01-12-47 को स.  
No. 90-91 of 19

ये एतद्वारा प्रमाणित किया है कि आज.....

.....

कम्पनी अधिनियम, 1956 ( 1956 को 1 ) के अधीन निर्माण की गई है और यह कम्पनी पंजीकृत है ।

I hereby certify that *GRANULES INDIA PRIVATE LIMITED*

.....  
is this day incorporated under the Companies Act, 1956 (No.1 of 1956) and that the Company is limited.

मेरे हस्ताक्षर से आज तारीख..... को दिया गया ।

Given under my hand at *HYDERABAD* this *10th*

day of *March* One thousand nine hundred and *Ninety One*.

(27th Pchalguna 1912 saka)



*R. Vasudevan*  
(R. VASUDEVAN)  
रजिस्ट्रार का अधिकारी  
Registrar of Companies  
Andhra Pradesh.



**INCORPORATED**  
**UNDER THE COMPANIES ACT, 1956 (1 OF 1956)**  
**COMPANY LIMITED BY SHARES**  
**MEMORANDUM OF ASSOCIATION**  
**OF**  
**GRANULES INDIA LIMITED**

- I. The name of the Company is **GRANULES INDIA LIMITED**.
- II. The Registered Office of the Company will be situated in the State of Telangana.
- III. The objects for which the Company is established are:
  - (A) **THE MAIN OBJECTS TO BE PURSUED BY THE COMPANY ON ITS INCORPORATION ARE:**
    1. To engage in and carry on business in India or elsewhere as manufactures, dealers, distributors, stockists, agents, exporters, importers, brokers, developers, rectifiers, consultant, manipulators, preservers, hires, sellers, collaborators, processors, developers, converters of all types of drugs and chemicals used in chemical, drug paint, food leather, Dairy and all other types of drugs formulations, medical preparations including basic drugs, formulations, intermediataries, catalysts and other materials used or useful in Pharmaceutical and drug industry, food, food products, food additives feed supplements, confectioneries, bakery products, dairy products, beverages, food concentrates, cosmetics, toilet preparations, disinfectants surgical dressings and equipments, biological and non-biological, chemical, synthetic and natural raw materials for human, animal and agricultural use.

**(B) THE OBJECTS INCIDENTAL OR ANCILLARY TO THE ATTAINMENT OF THE MAIN OBJECTS ARE:**

1. To engage in and carry on business in India or elsewhere as manufacturers, dealers, distributors, stockists, agents, exporters, importers, brokers, developers, rectifiers, hirers, sellers, collaborators, converters of all types of machinery, equipment tools, accessories, spares, plant, implements used in pharmaceutical drug, food, beverages, bakery, confectionery, dairy cosmetic, toilet, surgical industries.
2. To establish, provide, maintain subsidies, or assist research and development centers, Medical Institution, Hospitals, Agriculture farms, Dairy and Veterinary laboratories, Scientific and Technical Information Centers, Experimental Workshops, Biomedical Clinics, Bacteriological and immunological laboratories.
3. To undertake and carry on all scientific and Technical research, experiments, testing of all kinds and to promote studies and research both in scientific and technical fields, investigations and invention by establishing, providing, subsidizing and owing or assisting institutions, workshops, Libraries, Lectures meetings and conferences and by providing for the remuneration of scientific and technical professors and by providing for the award of exhibition, scholarships, prizes and grants to students or otherwise to encourage, promote and reward studies researches, investigations, experiments of any kind that may be considered likely to the business which the company is authorized to carry on.
4. To establish and develop facilities directly and indirectly to manufactures products and items states in the main object (A) above based on all the known systems of alleviation of ailments and disorders such as Ayurvedic, Unani, Allopathic, Homeopathic, Biochemic, Yogic, Naturopathic and like for humans, animal and plants.
5. To take on lease, hire purchase or acquire by license or otherwise any lands, rights over or connected with lands, factories, plants, building, works, wells, lorries, machinery's and other apparatus, stock-in-trade, tools and implement, patents, designs, trademarks, copyrights, licenses, privileges, concessions, invocations, inventions, secret devices of processes and movable or immovable property of any description which may be deemed necessary or convenient for any business the Company is authorized to carry on.
6. To erect, construct, work, maintain, improve or alter or assist in the erection, construction, working, maintenance, improvement or alteration of any factories, plants, machinery, works and all other appliances and conveniences required for the manufacture, expenses, storage, purchase and sale of the products of the Company and to contribute to the expenses of construction, improvement, maintenance and working any of the same and to pull down, reconstruct and repair any of the same.
7. To lease, let out on hire, mortgage, pledge, sell or otherwise dispose of the whole or any part to the undertaking of the Company or any lands, business, property, rights or assets of any kind of the Company or share or interest therein respectively, in such manner and for such consideration as the Company may think fit and in particular for shares, debenture or securities, of any other corporation having object altogether or in part similar to those of the Company.
8. To adopt such means of making known the products of the Company as may seem expedient.



9. To pay all or any costs, charges and expenses, preliminary and incidental to the promotion, formation, registration and establishment of the Company.
10. To purchase or otherwise acquire and undertake all or any part of the business, property and liabilities of any persons or corporation carrying on any business which the Company is authorized to carry on or possessed of property suitable for the purchase of the Company.
11. To take or otherwise acquire and hold shares in any other Company in India and abroad having objects altogether or in part similar to those of this Company or carrying on any business capable of being conducted so as directly or indirectly to benefit the Company.
12. To enter into partnership or into any arrangement for sharing profits, union of interest, cooperation, joint venture, reciprocal concession or otherwise with any person, corporation, local, Government or Company carrying on or engaged in or about to carry on or engage in any business or transaction which this Company is authorized to carry on or engage in any business or transactions capable of being conducted so as directly or indirectly to benefit this Company and to take or otherwise acquire and hold shares or stock in any such Company.
13. To establish and control, agencies and branches of the Company in India and other nations and for that purpose, to employ employees, agents, branch managers, secretaries, treasurers and other officers and clerks or servants and brokers or commission agents and to pay or provide for them such salaries, commissions, brokerage or remunerations as may be found necessary, fit, expedient or desirable.
14. To borrow or raise or secure funds, finances & other necessary resources from persons, banks, institutions of India of Foreign origin or terms & conditions as deemed fit & within the frame work of India and International rules and regulations in force from time to time.
15. To support or subscribe or donate to such person or to any charitable or other institutions, clubs, societies funds or objects either directly or indirectly conducive to any of the Company's objects.
16. To open an account with any Individual, firm or Company with any Bank or Banks or shroffs and to pay into and to withdraw money from such account or accounts.
17. To conduct, carry out, maintain, improve, manage, control and superintend buildings, houses, water tanks, factories, huts and works in connection therewith and other works which may seem directly or indirectly conducive to any of the objects of the Company and to contribute to subsidies or otherwise aid or take part in any such operations.
18. To conduct studies of technological development, undertake systematic market survey and for this purpose to prepare and get prepared reports, blue prints, statistics and other information either with or without foreign collaboration and to disseminate result of such studies or surveys as the Company may deem expedient.
19. To train or to pay for the training in India or abroad of any members of the staff of the Company or any other employee of the Company either in the present or likely to be in employment of the Company in future, with training in the opinion of the Company is likely to benefit the Company in its day to day working, knowledge, management, administration and research.
20. To expend money in experimenting or testing and in improving or in seeking to improve any patents, rights, inventions, discoveries, processes or information in processions of or which the Company may acquire or proposes to acquire.

21. To seek the required foreign collaboration and technical know how if and when needed.
22. To effect and modification of the Company's Articles of Association or change its objects in the manner prescribed by the Companies Act, 2013 and oppose any proceedings and applications which may seem calculated directly or indirectly to prejudice the interests of the Company.
23. To do all or any of the above things in any part of the world and either as principals, agents, contractors, trustees, or otherwise and either alone or in conjunction with others and by or through agents, sub-contractors, trustees or otherwise.
24. Generally to do all such things as may appear to be incidental or conducive to the attainment of the above main objects or any them.

**(C) OTHER OBJECTS**

1. To buy, sell, import, export, manufacture, manipulate, treat, prepare and deal in merchandise, commodities and particles of all kinds and generally to carry on business as merchants, importers, exporters, agents, stockists and distributors.
  2. To established hospitals, medical research centre, experimental agricultural farms, carry on horticultural research, biogenetic research, veterinary and dairy research setup plant and machinery manufacturing unit for the purpose of achieving the object stated in (A) above.
  3. To establish consultancy cell to provide all necessary information and guidance regarding scientific and technical matters for the desired people to enable them to start their own establishments.
- IV. The Liability of the Members of the Company is Limited.
- V. The Authorized Share Capital of the Company is Rs. 50,50,00,000/- (Rupees Fifty Crores and Fifty Lakhs only) divided into 50,50,00,000 (Fifty Crores and Fifty Lakhs only) Equity Shares of Re. 1/- (Rupee One only) each. The Equity shares shall have the rights, privileges and conditions attaching thereto as are provided by the regulations of the Company for the time being, with power to increase and reduce the Capital of the Company and to divide the Shares in the Capital for the time being into several classes and to attach thereto respectively such preferential rights, privileges or conditions as may be determined by or in accordance with the regulation of the Company and to vary, modify or abrogate any such rights, privileges or conditions in such manner as may for the time being be provided by the regulations of the Company.

- VI. We the several persons, whose names and addresses have been subscribed hereunder are desirous of being formed into a Company in pursuance of the Memorandum of Association and we respectively agree to take the number of shares in the capital of the company set opposite our respective names.

| Sl. No. | Names, Addresses, Description, Occupations and Signatures of the Subscribers                                                   | No. of Equity Shares taken by each subscriber | Name, Address, Description, Occupation and Signature of the Witness                                                                          |
|---------|--------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------|
| 1.      | Sd/-<br><b>C. Nageswara Rao</b><br>S/o. Venkata Subbaiah<br>Second Lean,<br>Chandra Mouli Nagar,<br>Guntur<br><br>Occ : Doctor | 10<br>(Ten Only)                              | Sd/-<br><b>V. Amamath</b><br>S/o. V. Anjaneyulu<br>Chartered Accountant<br>206, Santhoshima Complex,<br>RTC 'X' Roads Musheerabad, Hyderabad |
| 2       | Sd/-<br><b>C. Hari Prasad</b><br>S/o. C. Nageswara Rao<br>Second Lane,<br>Chandra Mouli Nagar,<br>Guntur<br><br>Occ. : Doctor  | 10<br>(Ten Only)                              |                                                                                                                                              |
|         | Total No. of Shares taken                                                                                                      | 20<br>(Twenty Only)                           |                                                                                                                                              |

Place : Hyderabad

Date : 26.02.1991



**THE COMPANIES ACT, 2013**  
**COMPANY LIMITED BY SHARES**  
**(Incorporated under the Companies Act, 1956)**  
**ARTICLES OF ASSOCIATION**  
**OF**  
**GRANULES INDIA LIMITED**

The following regulations comprised in these Articles of Association were adopted pursuant to special resolution passed by the members at the 24<sup>th</sup> annual general meeting of the Company held on Thursday, 13<sup>th</sup> August, 2015 in substitution for, and to the entire exclusion of, the earlier regulations comprised in the extant Articles of Association of the Company.

**Constitution of the Company**

1. The regulations contained in the Table marked 'F' in Schedule I to the Companies Act, 2013 shall not apply to the Company, except in so far as the same are repeated, contained or expressly made applicable in these Articles or by the said Act, which shall be the regulations for the management of the company.

**Interpretation**

2. In these regulations-
  - (a) "Act" means The Companies Act, 2013 or any statutory modification or re-enactment thereof for the time being in force and any previous company law, so far as may be applicable.
  - (b) "Articles" means these Articles of Association of the Company or as altered from time to time.

- (c) "Board of Directors" or "Board", means the collective body of the Directors of the Company.
- (d) "Company" means GRANULES INDIA LIMITED.
- (e) "Rules" means the applicable rules for the time being in force as prescribed under relevant sections of the Act.
- (f) "Seal" means the common seal of the Company.
- (g) "The office" means the Registered Office for the time being of the Company.
- (h) Words importing the singular number shall include the plural number and words importing the masculine gender shall, where the context admits, include the feminine and neuter gender.
- (i) Reference in these articles to any provision of the Act shall, where the context so admits, be construed as a reference by any statute for the time being in force.
- (j) Unless the context otherwise requires words or expressions contained in these Articles shall bear the same meaning as in the Act or Rules, or any statutory modification thereof in force at the date at which these Articles become binding on the Company.

### **Share Capital and Variation of Rights**

3. Subject to the provisions of the Act and these Articles, the shares in the capital of the Company shall be under the control of the Board who may issue, allot or otherwise dispose of the same or any of them to such persons, in such proportion and on such terms and conditions and either at a premium or at par and at such time as they may from time to time think fit.
4. The Board may issue and allot shares in the Capital of the Company on payment or part payment for any property or assets of any kind whatsoever sold or transferred, goods or machinery and appliances supplied or for services rendered to the Company in or about the formation or promotions of the Company or the acquisition and or conduct of its business; and any shares which may be so allotted, may be issued as fully paid up shares, if so issued, shall be deemed to be fully paid up shares.
5. The Company may issue the following kinds of shares in accordance with these Articles, the Act, the Rules and other applicable laws:
  - (a) Equity share capital:
    - (i) with voting rights; and / or
    - (ii) with differential rights as to dividend, voting or otherwise in accordance with the Rules; and
  - (b) Preference share capital
6. 1. Every person whose name is entered as a member in the register of members shall be entitled to receive within two months after allotment or within one month from the date of receipt by the Company of the application for the registration of transfer or transmission or within such other period as the conditions of issue shall provide:
  - (a) one certificate for all his shares without payment of any charges; or

- (b) several certificates, each for one or more of his shares, upon payment of such charges may be fixed by the Board for each certificate after the first.
2. Every certificate shall be under the seal and shall specify the shares to which it relates and the amount paid-up thereon.
  3. In respect of any share or shares held jointly by several persons, the Company shall not be bound to issue more than one certificate, and delivery of a certificate for a share to one of several joint holders shall be sufficient delivery to all such holders.
7. A person subscribing to shares offered by the Company shall have the option either to receive certificates for such shares or hold the shares in a dematerialised state with a depository. Where a person opts to hold any share with the depository, the Company shall intimate such depository the details of allotment of the share to enable the depository to enter in its records the name of such person as the beneficial owner of that share.
8. If any share certificate be worn out, defaced, mutilated or torn or if there be no further space on the back for endorsement of transfer, then upon production and surrender thereof to the Company, a new certificate may be issued in lieu thereof, and if any certificate is lost or destroyed then upon proof thereof to the satisfaction of the Company and on execution of such indemnity as the Board deems adequate, a new certificate in lieu thereof shall be given. Every certificate under this Article shall be issued on payment of fees for each certificate as may be fixed by the Board.
9. The provisions of the foregoing Articles relating to issue of certificates shall *mutatis mutandis* apply to issue of certificates for any other securities including debentures (except where the Act otherwise requires) of the Company.
10.
    1. Subject to the provisions of the Act, the Company may at any time pay a commission to any person for subscribing (whether absolutely or conditionally) for any securities of the Company or procuring subscriptions (whether absolute or conditional) for securities of the Company but so that the statutory conditions and requirements shall be observed and complied with. The amount of rate of commission shall not exceed the rate as may be fixed under the Companies Act, 2013, the Rules and SEBI guidelines wherever applicable.
    2. The commission may be satisfied by the payment of cash or the allotment of fully or partly paid shares or partly in the one way and partly in the other.
  11.
    1. If at any time the share capital is divided into different classes of shares, the rights attached to any class (unless otherwise provided by the terms or issue of the shares of that class) may, subject to the provisions of the Act, and whether or not the Company is being wound up, be varied with the consent in writing of the holders of three-fourths of the issued shares of that class, or with the sanction of a special resolution passed at a separate general meeting of the holders of the shares of that class and all the provisions of these Articles relating to general meetings shall *mutatis mutandis* apply, but so that the necessary quorum shall be two persons at least holding or representing by proxy one-third of the issued shares of the class in question.
    2. The rights conferred upon the holders of the shares of any class issued with preferred or other rights shall not, unless otherwise expressly provided by the terms of issue of the shares of that class, be deemed to be varied by the creation or issue of further shares ranking *paripassu* therewith.

12. Subject to the provisions of the Act, the Board shall have the power to issue or re-issue preference shares of one or more classes which are liable to be redeemed, or converted to equity shares, on such terms and conditions and in such manner as determined by the Board in accordance with the Act.
13. 1. The Board or the Company, as the case may be, may, in accordance with the Act and the Rules, issue further shares to –
  - (a) persons who, at the date of offer, are holders of equity shares of the Company provided the offer of issue of such further shares shall be deemed to include a right exercisable by the person concerned to renounce the shares offered to him or any of them in favour of any other person; or
  - (b) employees under any scheme of employees' stock option; or
  - (c) any persons, whether or not those persons include the persons referred to in clause (a) or clause (b) above.
2. A further issue of shares and/or securities may be made in any manner whatsoever as the Board may determine including by way of preferential offer or private placement, subject to and in accordance with the Act, the Rules and other regulatory approvals required from time to time.

### **Lien**

14. 1. The Company shall have a first and paramount lien -
  - (a) on every share (not being a fully paid share), for all monies (whether presently payable or not) called, or payable at a fixed time, in respect of that share; and
  - (b) on all shares (not being fully paid shares) standing registered in the name of a member, for all monies presently payable by him or his estate to the Company: Provided that the Board may at any time declare any share to be wholly or in part exempt from the provisions of this clause.
2. The Company's lien, if any, on a share shall extend to all dividends payable and bonuses declared from time to time in respect of such shares.
15. The Company may sell, in such manner as the Board thinks fit, any shares on which the Company has a lien: Provided that no sale shall be made –
  1. unless a sum in respect of which the lien exists is presently payable; or
  2. until the expiration of fourteen days after a notice in writing stating and demanding payment of such part of the amount in respect of which the lien exists as is presently payable, has been given to the registered holder for the time being of the share or to the person entitled thereto by reason of his death or insolvency.
16. To give effect to such sale, the Board of Directors may authorise some person to transfer the shares sold to the purchaser thereof and the purchaser shall be registered as the holder of the shares comprised in any such transfer. The purchaser shall not be bound to see to the application of the purchase money, nor shall his title to the shares be affected by any irregularity or invalidity in the proceedings in reference to the sale.



17. The net proceeds of the sale after payment of the costs of the sale shall be received by the Company and applied towards payment of such part of the amount in respect of which the lien exists as is presently payable and the residue, if any, shall (subject to a like lien for sums not presently payable as existed upon the shares before the sale) be paid to the person entitled to the shares at the date of the sale.
18. In exercising its lien, the Company shall be entitled to treat the registered holder of any share as the absolute owner thereof and accordingly shall not (except as ordered by a court of competent jurisdiction or unless required by any statute) be bound to recognise any equitable or other claim to, or interest in, such share on the part of any other person, whether a creditor of the registered holder or otherwise. The Company's lien shall prevail notwithstanding that it has received notice of any such claim.
19. The provisions of these Articles relating to lien shall *mutatis mutandis* apply to any other securities including debentures of the Company.

### **Calls on Shares**

20.
  1. The Board may, from time to time, make calls upon the members in respect of any monies unpaid on their shares (whether on account of the nominal value of the shares or by way of premium) and not by the conditions of allotment thereof made payable at fixed times. Provided that no call shall exceed one-fourth of the nominal value of the share or be payable at less than one month from the date fixed for the payment of the last preceding call.
  2. Each member shall, subject to receiving at least fourteen days' notice specifying the time or times and place of payment, pay to the Company, at the time or times and place so specified, the amount called on his shares.
  3. The Board of Directors may, when making a call by resolution, determine the date on which such call shall be deemed to have been made not being earlier than the date of resolution making such call, and thereupon the call shall be deemed to have been made on the date so determined and if no such date is fixed the call shall be deemed to have been made on the date on which the resolution of the Board making the call was passed.
  4. A call may be revoked or postponed at the discretion of the Board.
21.
  1. A call shall be deemed to have been made at the time when the resolution of the Board authorising the call was passed and may be required to be paid by installments.
  2. The joint holders of a share shall be jointly and severally liable to pay all calls in respect thereof.
22. If a sum called in respect of the shares is not paid before or on the day appointed for payment thereof the person from whom the sum is due shall pay interest upon the sum at such rate not exceeding 10% per annum as may be fixed by the Board of Directors from the day appointed for the payment thereof to the time of the actual payment, but the Board of Directors shall be at liberty to waive payment of that interest wholly or in part.
23.
  1. Any sum which by the terms of issue of a share becomes payable on allotment or at any fixed date, whether on account of the nominal value of the share or by way of premium, shall, for the purposes of these Articles, be deemed to be a call duly made and payable on the date on which by the terms of issue such sum becomes payable.

2. In case of non-payment of such sum, all the relevant provisions of these Articles as to payment of interest and expenses, forfeiture or otherwise shall apply as if such sum had become payable by virtue of a call duly made and notified.
24. The Board –
  1. may, if it thinks fit, receive from any member willing to advance the same, all or any part of the monies uncalled and unpaid upon any shares held by him; and
  2. upon all or any of the monies so advanced, may (until the same would, but for such advance, become presently payable) pay interest at such rate as may be fixed by the Board. Nothing contained in this clause shall confer on the member (a) any right to participate in profits or dividends or (b) any voting rights in respect of the moneys so paid by him until the same would, but for such payment, become presently payable by him.
25. Neither a judgment nor a decree in favour of Company for calls or other moneys due in respect of any share, nor any part payment or satisfaction there under, nor the receipt by the Company of a portion of any money which shall, from time to time, be due from any member in respect of any share, either by way of principal or interest, nor any indulgence granted by the Company in respect of the payment of any such money, shall preclude the Company from thereafter proceeding to enforce a forfeiture of such shares as hereinafter provided.
26. If, by the conditions of allotment of any share, the whole or part of the amount or issue price, thereof shall be payable by installments, every such installments shall, when due, be paid to the Company by the person who for the time being and from time to time shall be registered holder of the share or his legal representative or representatives, if any.
27. All calls shall be made on a uniform basis on all shares falling under the same class.
28. The provisions of these Articles relating to calls shall *mutatis mutandis* apply to any other securities including debentures of the Company.

### **Transfer of Shares**

29.
  1. The instrument of transfer shall be in writing and all provisions of the Companies Act, 2013 and of any statutory modification thereof for the time being shall be duly complied with respect of all transfer of shares and the registration thereof.
  2. The instrument of transfer of any share shall be signed by or on behalf of both the transferor and the transferee and the transferor shall be deemed to remain the holder of such share until the name of the transferee is entered in the Register in respect thereof.
30. The Board may, subject to the right of appeal conferred by the Act, decline to register any transfer of shares (not being fully paid shares) to a person of whom they do not approve and they may also decline to register any transfer of shares on which the Company has a lien.
31. The Board of Directors may also decline to recognise any instrument of transfer unless:
  1. the instrument of transfer is duly executed and is in the form as prescribed in the Rules made under the Act;
  2. the instrument of transfer is accompanied by the certificate of shares to which it relates and such other evidence as the Board of Directors may reasonably require to show the right of transferor to make the transfer; and

3. the instrument of transfer is in respect of only one class of shares.
32. On giving of previous notice of at least seven days or such lesser period in accordance with the Act and Rules made there under, the registration of transfers may be suspended at such times and for such periods as the Board may from time to time determine: Provided that such registration shall not be suspended for more than thirty days at any one time or for more than forty five days in the aggregate in any year.
33. The provisions of these Articles relating to transfer of shares shall *mutatis mutandis* apply to any other securities including debentures of the Company.

### **Transmission of Shares**

34. On the death of a member, the survivor or survivors where the member was a joint holder, and his nominee or nominees or legal representatives where he was a sole holder, shall be the only persons recognised by the Company as having any title to his interest in the shares, but nothing in this Article shall release the estate of a deceased joint holder from any liability in respect of any share which had been jointly held by him with other persons. Provided that if the deceased member had been a member of a joint Hindu family, the Board on being satisfied to that effect and on being satisfied that the shares standing in his name in fact belonging to the joint family may recognise the survivors or the Kartha thereof as having title to the shares registered in the name of such member. Provided further in any case it shall be lawful for the Board in their absolute discretion to dispense with the production of probate or letters of administration or other legal representation upon such terms as to indemnity or otherwise as to the Board may deem just.
35. 1. Any person becoming entitled to a share in consequence of the death or insolvency of member may, upon such evidence being produced as may from time to time, be required by the Board and subject as hereinafter provided, elect either:
- (a) to be registered himself as holder of the shares; or
  - (b) to make such transfer of the shares as the deceased or insolvent member could have made.
2. The Board shall, in either case, have the same right to decline or suspend registration it would have had, if the deceased or insolvent member had transferred the shares before his death or insolvency.
36. 1. If the person so becoming entitled shall elect to be registered as holder of the shares himself, he shall deliver or send to the Company a notice in writing by him stating that he so elects.
2. If the person aforesaid shall elect to transfer the share, he shall testify his election by executing a transfer of the share.
3. All the limitations, restrictions and provisions of these regulations to the rights to transfer and the registration of transfer of shares shall be applicable to any such notice or transfer as aforesaid as if the death or insolvency of the member had not occurred and the notice of transfer were a transfer signed by that member.
4. A person becoming entitled to a share by reason of the death or insolvency of the holder shall be entitled to the same dividends and other advantages to which he would be entitled

if he were the registered holder of the share except that he shall not before being registered as a member in respect of the share be entitled in respect of it to exercise any right conferred by membership in relation to meetings of the Company.

Provided that the Board may, at any time, give notice requiring any such person to elect either to be registered himself or transfer the share and if the notice is not complied with within ninety days, the Board may thereafter withhold payment of all dividends, bonuses or other monies payable in respect of the share, until the requirements of the notice have been complied with.

37. The Company shall incur no liability or responsibility whatever in consequence of their registering or giving effect to any transfer of shares made or purporting to be made by an apparent legal owner thereof (as shown or appearing in the Register) to the prejudice of persons having or claiming any equitable right, title or interest to or in the same shares notwithstanding that the Company may have had notice of such equitable rights title or interest or notice prohibiting registration of such transfer and may have entered such notice or referred thereto in any books of the Company and the Company shall not be bound by or required to regard or attend to or give effect to any notice which may be given to it of any equitable rights, title or interest or be under any liability whatsoever for refusing or neglecting so to do, though it may have been entered or referred to in the books of the Company, but the Company shall nevertheless be at liberty to have regard and attend to any such notice and give effect thereto, if the Board shall think fit, subject to the provisions of Section 89.
38. The provisions of these Articles relating to transmission by operation of law shall *mutatis mutandis* apply to any other securities including debentures of the Company.

### **Forfeiture of Shares**

39. If any member fails to pay any call or installment of a call due in respect on any share on the day appointed for payment thereof, the Board may at any time thereafter, during such time as the call or installment remains unpaid, serve a notice on such member requiring him to pay such call or installment together with interest which may have accrued.
40. The notice shall name a further day (not earlier than the expiry of fourteen days from the date of service thereof) on or before which and the place where the payment required by the notice is to be made, and shall state that in the event of non- payment on or before the day and at the place appointed the shares in respect of which the call was made shall be liable to be forfeited.
41. If the requirements of any such notice as aforesaid are not complied with, any share in respect of which the notice has been given may at any time thereafter before the payment required by the notice has been made, be forfeited by a Resolution of the Board of Directors to that effect, such forfeiture shall include all dividends declared in respect of the forfeited shares, and not actually paid before the forfeiture.
42. Neither the receipt by the Company for a portion of any money which may from time to time be due from any member in respect of his shares, nor any indulgence that may be granted by the Company in respect of payment of any such money, shall preclude the Company from thereafter proceeding to enforce a forfeiture in respect of such shares as herein provided. Such forfeiture shall include all dividends declared or any other moneys payable in respect of the forfeited shares and not actually paid before the forfeiture.

43. When any share shall have been so forfeited, notice of the forfeiture shall be given to the defaulting member and an entry of the forfeiture with the date thereof, shall forthwith be made in the register of members but no forfeiture shall be invalidated by any omission or neglect or any failure to give such notice or make such entry as aforesaid.
44. The forfeiture of a share shall involve extinction at the time of forfeiture, of all interest in and all claims and demands against the Company, in respect of the share and all other rights incidental to the share.
45. A forfeited share shall become the property of the Company and may be sold, re-allotted or otherwise disposed of, either to the person who was before forfeiture the holder thereof or entitled thereof or entitled thereto, or to any other person, upon such terms and in such manner as the Board thinks fit, and at any time before a sale, re-allotment or disposition the forfeiture may be cancelled on such terms as it thinks fit. The Board may, if necessary, authorise some person to transfer a forfeited share to any other person as aforesaid.
46. A member whose shares have been forfeited shall cease to be a Member in respect of the forfeited shares, but shall, notwithstanding the forfeiture, remain liable to pay to the Company all monies which, at the date of forfeiture, were presently payable by him to the Company in respect of the shares, with interest thereon at such rate as the Board may determine, from the date of forfeiture until payment, and the Board may enforce payment without any allowance for the value of the shares at time of forfeiture. His liability shall cease if and when the Company receives payment in full of the nominal amount of shares whether legal proceedings for the recovery of the same had been barred by limitation or not.
47. A statutory declaration in writing that the declarant is a Director, the manager or the secretary of the company, and that a share has been duly forfeited on a date stated in the declaration, shall be conclusive evidence of the facts therein stated as against all persons claiming to be entitled to the share, and such declaration and the share on the sale, re- allotment or disposal thereof, together with the certificate for the share delivered to a purchaser or allottee thereof, shall (subject to the execution of a transfer if the same be so required) constitute a good title to the share, and the person to whom the share is sold, re-allotted or disposed off shall be registered as the holder of the share and shall not be bound to see to the application of the consideration if any nor shall his title to the share be affected by any irregularity or invalidity in the proceeding in reference to the forfeiture, sale, re-allotment or disposal of the share.
48. Upon any sale after forfeiture or for enforcing a lien in exercise of the powers hereinabove given, the Board may, if necessary, appoint some person to execute an instrument for transfer of the shares sold and cause the purchaser's name to be entered in the register of members in respect of the shares sold and after his name has been entered in the register of members in respect of such shares the validity of the sale shall not be impeached by any person.
49. Upon any sale, re-allotment or other disposal under the provisions of the preceding Articles, the certificate(s), if any, originally issued in respect of the relative shares shall (unless the same shall on demand by the Company has been previously surrendered to it by the defaulting member) stand cancelled and become null and void and be of no effect, and the Board shall be entitled to issue a duplicate certificate(s) in respect of the said shares to the person(s) entitled thereto.
50. The Board may, subject to the provisions of the Act, accept a surrender of any share from or by any member desirous of surrendering those on such terms as they think fit.

51. The provisions of these Articles as to forfeiture shall apply in the case of non-payment of any sum which by the terms of issue of a share, becomes payable at a fixed time whether on account of the nominal value of the share or by way of premium, as if the same had been payable by virtue of a call duly made and noticed.
52. The provisions of these Articles relating to forfeiture of shares shall *mutatis mutandis* apply to any other securities including debentures of the Company.

### **Alteration of Capital**

53. Subject to the provisions of the Act, the Company may, by ordinary resolution -
1. increase the share capital by such sum, to be divided into shares of such amount as it thinks expedient;
  2. consolidate and divide all or any of its share capital into shares of larger amount than its existing shares; Provided that any consolidation and division which results in changes in the voting percentage of members shall require applicable approvals under the Act;
  3. convert all or any of its fully paid-up shares into stock, and reconvert that stock into fully paid-up shares of any denomination;
  4. sub-divide its existing shares or any of them into shares of smaller amount than is fixed by the memorandum;
  5. cancel any shares which, at the date of the passing of the resolution, have not been taken or agreed to be taken by any person.
54. The new shares shall be subject to the same provisions with reference to the payment of calls, lien, transfer, transmission, forfeiture and otherwise as the shares in the original share capital.
55. When any shares have been converted into stock:
1. the holders of such stock may transfer the same, or any part thereof, in the same manner and subject to the same regulations as and subject to which the shares from which the stock arose might previously to conversion have been transferred or as near thereto as circumstances admit, but the Board may from time to time, if it thinks fit, fix the minimum amount of stock transferable, with power nevertheless at its discretion to waive the observance of such rules in any particular case, provided that such minimum shall not exceed the nominal amount of the shares from which the stock arose.
  2. the holders of stock shall, according to the amount of stock held by them, have the same rights, privileges and advantages as regards dividends, voting at meetings of the Company, and other matters, as if they held the shares from which the stock arose; but no such privilege or advantage (except participation in the dividends and profits of the Company and in the assets on winding up) shall be conferred by an amount of stock which would not, if existing in shares, have conferred that privilege or advantage.
  3. such of these Articles of the Company as are applicable to paid-up shares shall apply to and the words "share" and "shareholder"/"member" shall include "stock" and "stock-holder" respectively.
56. The Company may, by resolution as prescribed by the Act, reduce in any manner and in accordance with the provisions of the Act and the Rules, -



1. its share capital; and/or
2. any capital redemption reserve account; and/or
3. any securities premium account; and/or
4. any other reserve in the nature of share capital.

#### **Joint Holders**

57. Where two or more persons are registered as joint holders of any share, they shall be deemed to hold the same as joint tenants with benefit of survivorship, subject to the following provisions:
1. The person whose name stands first on the register in respect of such shares shall alone be entitled to delivery of certificate thereof.
  2. Any one of such persons may give effectual receipts for any dividend, bonus or return capital payable in respect of such share and such joint holders shall be severally, as well as jointly liable for payment of all installments and calls due in respect of such share/shares.
  3. Any one of two or more joint-holders may vote at any meeting either personally or by attorney or by proxy in respect of such shares as if he were solely entitled thereto and if more than one of such joint holders be present at any meeting personally or by proxy or by attorney then that one of such persons so present whose name stands first or higher (as the case may be) on the register in respect of such shares shall alone be entitled to vote in respect thereof. Several executors or administrators, of a deceased member in whose names any share stands shall be for the purpose of this Article be deemed joint holders thereof;
  4. In case of death of any one or more of such joint holders, the survivors shall be the only persons, recognised by the Company as having any title to or interest in such share, but the Directors may require such evidence of death as they may deem fit, and nothing herein contained shall be taken to release the estate of a deceased joint holder from any liability on shares held by him jointly with any other person.
  5. All notices directed to be given to the members shall be given to whichever such persons is named first in the register and notice so given shall be sufficient notice to all the holders of such shares.
  6. The provisions of these Articles relating to joint holders of shares shall *mutatis mutandis* apply to any other securities including debentures of the Company registered in joint names.

#### **Capitalisation of Profits**

58. 1. The Company by ordinary resolution in General Meeting may, upon the recommendation of the Board, resolve:
- (a) that it is desirable to capitalise any part of the amount for the time being standing to the credit of the Company's reserve accounts or to the credit of the Profit & Loss Accounts or otherwise available for distribution; and

- (b) that such sum is accordingly set free for distribution in the manner specified in clause (2) amongst the members who would have entitled thereto if distributed by way of dividend and in the same proportion.
  - 2. The sum aforesaid shall not be paid in cash but shall be applied, subject to the provisions contained in clause (3) either in or towards;
    - (a) paying up any amounts for the time being unpaid on shares held by such members respectively;
    - (b) paying up in full, unissued shares of the Company to be allotted and distributed, credited as fully paid up, to and amongst such members in the proportions aforesaid; or
    - (c) partly in the way specified in sub-clause (i) and partly in that specified in sub-clause (ii)
  - 3. A securities premium account and a capital redemption reserve account or any other permissible reserve account may, for the purposes of this Article, be applied in the paying up of unissued shares to be issued to members of the Company as fully paid bonus shares;
  - 4. The Board shall give effect to the resolution passed by the Company in pursuance of this regulation.
59. 1. Whenever such a resolution as aforesaid shall have been passed, the Board shall:
- (a) make all appropriations and applications of the undivided profits resolved to be capitalised thereby and all allotments and issues of fully paid shares, if any, and
  - (b) generally do all acts and things required to give effect thereto.
2. The Board shall have full power:
- (a) to make such provisions, by the issue of fractional certificates or by payment in cash or otherwise as it thinks fit, for the case of shares or other securities becoming distributable in fractions; and
  - (b) to authorise any person to enter, on behalf of all the members entitled thereto, into an agreement with the Company providing for the allotment to them respectively, credited as fully paid-up, of any further shares or other securities to which they may be entitled upon such capitalisation, or (as the case may require) for the payment by the Company on their behalf, by the application thereto of their respective proportions of profits resolved to be capitalised, of the amount or any part of the amounts remaining unpaid on their existing shares.
3. Any agreement made under such authority shall be effective and binding on such members.

### **Buy-Back of Shares**

60. Notwithstanding anything contained in these Articles but subject to all applicable provisions of the Act or any other law for the time being in force, the Company may purchase its own shares or other specified securities.



## **General Meetings**

- 61. All general meetings other than annual general meeting shall be called extraordinary general meeting.
- 62. The Board may, whenever it thinks fit, call an extraordinary general meeting.

## **Proceedings at General Meetings**

- 63.
  - 1. No business shall be transacted at any general meeting unless a quorum of members is present at the time when the meeting proceeds to business.
  - 2. No business shall be discussed or transacted at any general meeting except election of Chairperson whilst the chair is vacant.
  - 3. The quorum for a general meeting shall be as provided in the Act.
- 64. The Chairperson of the Company shall preside as Chairperson at every general meeting of the Company.
- 65. If there is no such Chairperson, or if he is not present within fifteen minutes after the time appointed for holding the meeting, or is unwilling to act as chairperson of the meeting, the directors present shall elect one of their members to be Chairperson of the meeting.
- 66. If at any meeting no director is willing to act as Chairperson or if no director is present within fifteen minutes after the time appointed for holding the meeting, the members present shall, by poll or electronically, choose one of their members to be Chairperson of the meeting.
- 67. On any business at any general meeting, in case of an equality of votes, whether on a show of hands or electronically or on a poll, the Chairperson shall have a second or casting vote.
- 68.
  - 1. The Company shall cause minutes of the proceedings of every general meeting of any class of members or creditors and every resolution passed by postal ballot to be prepared and signed in such manner as may be prescribed by the Rules and kept by making within thirty days of the conclusion of every such meeting concerned or passing of resolution by postal ballot entries thereof in books kept for that purpose with their pages consecutively numbered.
  - 2. The Chairperson of the meeting may exclude at his absolute discretion such of the matters as are or could reasonably be regarded as defamatory of any person, irrelevant or immaterial to the proceedings detrimental to the interests of the Company.
- 69.
  - 1. The books containing the minutes of the proceedings of any general meeting of the Company or a resolution passed by postal ballot shall:
    - (a) be kept at the registered office of the Company; and
    - (b) be open to inspection of any member without charge, during 11.00 a.m. to 1.00 p.m. on all working days other than Saturdays.
  - 2. Any member shall be entitled to be furnished, within the time prescribed by the Act, after he has made a request in writing in that behalf to the Company and on payment of such fees as may be fixed by the Board, with a copy of any minutes referred to in clause (1) above, Provided that a member who has made a request for provision of a soft copy of the minutes of any previous general meeting held during the period immediately preceding three financial years, shall be entitled to be furnished with the same free of cost.

### **Adjournment of Meeting**

70. The Chairperson of the meeting may with the consent of any meeting at which a quorum is present (and shall if so directed by the meeting) adjourn the meeting from time to time and from place to place, but no business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place. When a meeting is adjourned for thirty days or more notice of the adjourned meeting shall be given as in the case of an original meeting. Save as aforesaid, and as provided in the Act, it shall not be necessary to give any notice on an adjournment or of the business to be transacted at an adjourned meeting.

### **Voting Rights**

71. Subject to any rights or restrictions for the time being attached to any class or classes of shares -
1. on a show of hands, every member present in person shall have one vote; and
  2. on a poll, the voting rights of members shall be in proportion to his share in the paid-up equity share capital of the company.
72. A member may exercise his vote at a meeting by electronic means in accordance with the Act and shall vote only once.
73. In case of joint holders, the vote of the senior who tenders a vote whether in person or by proxy, shall be accepted to the exclusion of the votes of the other joint holders and for this purpose, seniority shall be determined by the order in which the names stand in the Register of Members.
74. A member of unsound mind, or in respect of whom an order has been made by any court having jurisdiction in lunacy, may vote, whether on a show of hands or on a poll, by his committee or other legal guardian, and any such committee or guardian may, on a poll, vote by proxy, provided that such evidence as the Board may require of the authority of the person claiming to vote shall have been deposited at the office or such other office of the Company as may from time to time be designated by the Board, not less than forty eight hours before the time for holding the meeting or adjourned meeting at which such person claims to vote. If any member be a minor, the vote in respect of his share or shares shall be by his guardian as disclosed in the Register of Members.
75. Subject to the provisions of the Act and other provisions of these Articles, any person entitled under the Transmission Clause to any shares cannot vote at any general meeting unless the Board shall have previously admitted his right to vote at such meeting in respect thereof.
76. Any business other than that upon which a poll has been demanded may be proceeded with, pending the taking of the poll.
77. No member shall, unless the Board otherwise determines, be entitled to vote at any General Meeting, either personally or by proxy, or to exercise any privilege as a Member unless all calls or other sums presently payable by him in respect of shares in the Company have been paid.
78. No objection shall be raised to the qualification of any voter except at the meeting or adjourned meeting at which the vote objected to is given or tendered, and every vote not disallowed at such meeting shall be valid for all purposes. Any such objection made in due time shall be referred to the Chairperson of the meeting, whose decision shall be final and conclusive.

## **Proxy**

79. 1. Any member entitled to attend and vote at a meeting of the Company shall be entitled to appoint any person whether a member or not as his proxy to attend and vote instead of himself, but the proxy so appointed shall not, unless be a member, have any right to speak at the meeting and shall not be entitled to vote except on a poll.
2. The instrument appointing a proxy and the power-of-attorney or other authority, if any, under which it is signed or a notarised copy of that power or authority, shall be deposited at the registered office of the Company not less than 48 hours before the time for holding the meeting or adjourned meeting at which the person named in the instrument proposes to vote, and in default the instrument of proxy shall not be treated as valid.
80. An instrument appointing a proxy shall be in the form as prescribed in the Rules.
81. A vote given in accordance with the terms of an instrument of proxy shall be valid, notwithstanding the previous death or insanity of the principal or the revocation of the proxy or of the authority under which the proxy was executed, or the transfer of the shares in respect of which the proxy is given:
- Provided that no intimation in writing of such death, insanity, revocation or transfer shall have been received by the Company at its office before the commencement of the meeting or adjourned meeting at which the proxy is used.
82. Subject to the provisions of the Companies Act, 2013, the Chairperson of a General Meeting shall be the sole and absolute judge of the validity of every vote tendered at such meeting, or at a poll demanded at such meeting, and may allow or disallow any vote tendered accordingly, as he shall be of opinion that the same is or is not valid.

## **Board of Directors**

83. 1. Unless otherwise determined by the Company in general meeting, the number of directors shall not be less than 3 (three) and shall not be more than 15 (Fifteen).
2. Subject to the provisions of Section 149 of the Act, the Company may from time to time by Special Resolution increase or reduce the number of Directors within the limits fixed by these Articles, and may also determine in what rotation the increased or reduced number is to vacate the office.
84. 1. The first Directors of the Company are
- (a) Dr. C. Nageswara Rao
- (b) Dr. C. Hari Prasad
2. The Board shall have the power to determine the directors whose period of office is or is not liable to determination by retirement of directors by rotation.
3. The same individual may, at the same time, be appointed as the Chairperson of the Company as well as the Managing Director or Chief Executive Officer of the Company.
85. 1. The remuneration of the directors shall, in so far as it consists of a monthly payment, be deemed to accrue from day-to-day.

2. The remuneration payable to the directors, including any managing or whole-time or manager, if any, shall be determined in accordance with and subject to the provisions of the Act by an ordinary resolution passed by the Company in general meeting.
  3. Every Director shall be paid a sitting fee not exceeding the limits prescribed in the Companies Act, 2013 or any amendment thereof for each meeting of the Board of Directors or of any committee thereof attended by him and shall be paid in addition thereto all travelling, hotel and other expenses properly incurred by him in attending and returning from the meetings of the Board of Directors or any committee thereof or General Meeting of the company or in connection with the business of the Company to and from any place.
86. All cheques, promissory notes, drafts, *hundis*, bills of exchange and other negotiable instruments, and all receipts for monies paid to the Company, shall be signed, drawn, accepted, endorsed, or otherwise executed, as the case may be, by such person and in such manner as the Board shall from time to time by resolution determine.
87. Subject to the provisions of the Act, the Board of Directors shall have power at any time, and from time to time, to appoint one or more persons as additional Directors, provided that the number of Directors and additional Directors together shall not exceed the maximum number fixed. Any additional Director so appointed shall hold office up to the date of the next annual general meeting, but he shall be eligible for election by the Company at that meeting.
88. 1. The Board of Directors may appoint an alternate Director to act for a Director (hereinafter called the original Director) during the absence of the Original Director for a period of not less than three months from the India. No person shall be appointed as an alternate director for an independent director unless he is qualified to be appointed as an independent director under the provisions of the Act.
2. An alternate Director shall not hold office for a period longer than that permissible to the Original Director in whose place he has been appointed and shall vacate office if and when the original Director returns to India. If the term of office of the original Director is determined before he so returns to India, any provision for the automatic reappointment of retiring Director in default of another appointment shall apply to the original, and not to the alternate Director.
89. If and so long as the Company is indebted to any financial institution, bank, corporation or any other statutory body, or if the Company has entered into any obligation with any such institution, bank, corporation or body in relation to any financial assistance by way of loan advanced to the Company or guarantee or given of any loan borrowed or liability incurred by the Company or so long as any such institution, bank, corporation or body remains a member of the Company, the Board may agree that such institutions, bank, corporation or body shall, subject to the provisions of Section 152 of the Act and to the extent agreed by the Board jointly or severally be entitled, from time to time to appoint one or more persons to be a Director or Directors of the Company and to remove any such Director or Directors and appoint any other person or persons to be a Director or Directors in his place or their places and to fill any vacancy, otherwise occurring in the office of such Directors. The Directors so appointed shall not, subject to the provisions of Section 152 of the Act, and to the extent agreed by the Board, be liable to retirement by rotation. Such Directors shall be entitled to attend the General Meeting of the Company.
90. If the office of any director appointed by the Company in general meeting is vacated before his term of office expires in the normal course, the resulting casual vacancy may, be filled by the

Board of Directors at a meeting of the Board and the person so appointed shall hold office up to the date which the Director in whose place he is appointed would have held office, if it had not been vacated as aforesaid.

### **Powers of Board**

91. The management and business of the Company shall be vested in the Board of Directors, who may exercise all such powers of the Company as are not by the Act or any statutory modification thereof for the time being in force, or by these presents, required to be exercised by the Company in General Meeting, subject nevertheless to any regulation of these presents, to the provisions of the said Act, and to such regulations being not inconsistent with the aforesaid regulations or provisions as may be prescribed by the Company in General Meeting, but no regulation made by the Company in General meeting shall invalidate any prior act of the Board which would have been valid if that regulation had not been made.
92. Subject to the provisions of Section 179 of the Act and other provisions of the Act and rules there under, the Board may delegate from time to time and at any time to committee formed out of the Directors any of its powers, authorities, and discretion for the time being vested in the Board and any such delegations may be made on such terms and subject to such conditions as the Board may think fit.
93. The Board may appoint, at any time and from time to time by a power of attorney under the Company's seal any person to be the attorney of the company for such purposes and with such powers, authorities and discretions not exceeding those vested in or exercisable by the Board under these Articles and for such period and subject to such conditions as the Board may from time to time thinks fit, and any such appointment may, if the Board thinks fit, be made in favour of the members or any of the members of any firm or company, or the members, directors, nominees or manufacturers of any firm or company or otherwise in favour of anybody or persons, whether nominated directly or indirectly by the Board, and any such power of attorney may contain such provision for the protection or convenience of persons dealing with such attorney as the Board may think fit.
94. Subject to the provisions of section 179, the Board may delegate all or any of their powers to any Directors jointly or severally or to any one Director at their discretion.
95. The Board may issue convertible and / or non-convertible securities of the Company, subject to and in accordance with the Act, the Rules, approval of the members and other regulatory approvals required from time to time.

### **Proceedings of the Board**

96.
  1. The Board of Directors may meet for the conduct of business, adjourn and otherwise regulate its meetings, as it thinks fit.
  2. A Director may and the Manager or Secretary, on the requisition of a Director, shall at any time summon a meeting of the Board. Notice in writing of every meeting of the Board shall be given to every Director for the time being in India, and at his usual address in India to every other Director.
  3. The quorum for a Board meeting shall be as provided in the Act.
  4. The participation of directors in a meeting of the Board may be either in person or through video conferencing or audio visual means or teleconferencing, as may be prescribed by the Rules or permitted under law.

97.
  1. Save as otherwise expressly provided in the Act, a meeting of the Board for the time being at which a quorum is present shall be competent to exercise all or any of the authorities, powers and discretions by or under the regulations of the Company for the time being vested in or exercisable by the Directors generally and all questions arising at any meeting of the Board shall be decided by a majority of the votes.
  2. In case of an equality of votes, the Chairperson of the Board, if any, shall have a second or casting vote.
98. The continuing directors may act notwithstanding any vacancy in the Board; but, if and so long as their number is reduced below the quorum fixed by the Act for a meeting of the Board, the continuing directors or director may act for the purpose of increasing the number of directors to that fixed for the quorum, or of summoning a general meeting of the Company, but for no other purpose.
99.
  1. The Board may elect a Chairperson of its meetings and determine the period for which he is to hold office.
  2. If no such Chairperson is elected, or if at any meeting the Chairperson is not present within five minutes after the time appointed for holding the meeting, the directors present may choose one of their members to be Chairperson of the meeting.
100.
  1. The Board may, subject to the provisions of the Act, delegate any of its powers to Committees consisting of such member or members of its body as it thinks fit.
  2. Any Committee so formed shall, in the exercise of the powers so delegated, conform to any regulations that may be imposed on it by the Board.
  3. The participation of directors in a meeting of the Committee may be either in person or through videoconferencing or audio visual means or teleconferencing, as may be prescribed by the Rules or permitted under law.
101. A Committee may elect a Chairperson of its meetings unless the Board, while constituting a Committee, has appointed a Chairperson of such Committee. If no such Chairperson is elected, or if at any meeting the Chairperson is not present within fifteen minutes after the time appointed for holding the meeting, the members present may choose one of their members to be Chairperson of the meeting.
102.
  1. A Committee may meet and adjourn as it thinks fit.
  2. Questions arising at any meeting of a Committee shall be determined by a majority of votes of the members present. In case of an equality of votes, the Chairperson of the Committee shall have a second or casting vote.
103. All acts done in any meeting of the Board or of a Committee thereof or by any person acting as a Director, shall, notwithstanding that it may be afterwards discovered that there was some defect in the appointment of any one or more of such Directors or of any person acting as aforesaid or that they or any of them were disqualified be as valid as if every such Director or such person had been duly appointed and was qualified to be a Director.
104. Save as otherwise expressly provided in the Act, a resolution in writing, signed, whether manually or by secure electronic mode, by a majority of the members of the Board or of a Committee thereof, for the time being entitled to receive notice of a meeting of the Board or Committee,



shall be valid and effective as if it had been passed at a meeting of the Board or Committee, duly convened and held.

105. 1. Subject to the provisions of the Act, A Chief Executive Officer, Manager, Company Secretary and Chief Financial Officer may be appointed by the Board for such term, at such remuneration and upon such conditions as it may think fit; and any Chief Executive Officer, Manager, Company Secretary and Chief Financial Officer so appointed may be removed by means of a resolution of the Board; the Board may appoint one or more Chief Executive Officers for its multiple businesses.
2. A director may be appointed as Chief Executive Officer, Manager, Company Secretary or Chief Financial officer subject to provisions of the Act and the Rules.

### **Registers**

106. The Company shall keep and maintain at its registered office all statutory registers namely, register of charges, register of members, register of debenture holders, register of any other security holders, the register and index of beneficial owners and annual return, register of loans, guarantees, security and acquisitions, register of investments not held in its own name and register of contracts and arrangements for such duration as the Board may, unless otherwise prescribed, decide, and in such manner and containing such particulars as prescribed by the Act and the Rules. The registers and copies of annual return shall be open for inspection during 11.00 a.m. to 1.00 p.m., on all working days, other than Saturdays, at the registered office of the Company by the persons entitled thereto on payment, where required, of such fees as may be fixed by the Board but not exceeding the limits prescribed by the Rules.
107. 1. The Company may exercise the powers conferred on it by the Act with regard to the keeping of a foreign register; and the Board may, subject to the provisions of the Act, make and vary such regulations as it may think fit respecting the keeping of any such register.
2. The foreign register shall be open for inspection and may be closed, and extracts may be taken there from and copies thereof may be required, in the same manner, *mutatis mutandis*, as is applicable to the register of members.

### **The Seal**

108. 1. The Board shall provide a common seal for the Company and shall have power from time to time to destroy the same, substitute a new seal in lieu thereof, and the common seal shall be kept at the Registered Office of the Company and committed to the custody of the Managing Director or the Secretary if there is one.
2. The seal shall not be affixed to any instrument except by authority of a resolution of the Board or of a Committee and unless the Board otherwise determines, every deed or other instrument to which theseal is required to be affixed shall, unless the same is executed by a duly constituted attorney for the Company be signed by one Director at least in whose presence the seal shall have been affixed and countersigned by the Managing Director and Secretary or such other person as may from time to time be authorised by the Board provided nevertheless that any instrument bearing the seal of the Company and issued for valuable consideration shall be binding on the Company notwithstanding any irregularity touching the authority to issue the same.

## **Dividends and Reserve**

109. The Company in General Meeting may declare dividends but no dividend shall exceed the amount recommended by the Board.
110. Subject to the provisions of the Act, the Board may from time to time pay to the members such interim dividends of such amount on such class of shares and at such times as it may think fit.
111. 1. The Board may, before recommending any dividend, set aside out of the profits of the Company such sums as it thinks fit as a reserve or reserves which shall, at the discretion of the Board, be applied for any purpose to which the profits of the Company may be properly applied, including provision for meeting contingencies or for equalising dividends; and pending such application, may, at the like discretion, either be employed in the business of the Company or be invested in such investments (other than shares of the Company) as the Board may, from time to time, think fit.
2. The Board may also carry forward any profits which it may consider necessary not to divide, without setting them aside as a reserve.
112. 1. Subject to the rights of persons, if any, entitled to shares with special rights as to dividends, all dividends shall be declared and paid according to the amounts paid or credited as paid on the shares in respect whereof the dividend is paid, but if and so long as nothing is paid upon any of the shares in the Company, dividends may be declared and paid according to the amounts of the shares.
2. No amount paid or credited as paid on a share in advance of calls shall be treated for the purposes of this Article as paid on the share.
3. All dividends shall be apportioned and paid proportionately to the amounts paid or credited as paid on the shares during any portion or portions of the period in respect of which the dividend is paid; but if any share is issued on terms providing that it shall rank for dividend as from a particular date such share shall rank for dividend accordingly.
113. 1. The Board may deduct from any dividend payable to any member all sums of money, if any, presently payable by him to the Company on account of calls or otherwise in relation to the shares of the Company.
2. Any transfer of shares shall not pass the right to any dividend declared thereon before the registration of the transfer.
114. 1. Any dividend, interest or other monies payable in cash in respect of shares may be paid by electronic mode or by cheque or warrant sent through the post directed to the registered address of the holder or, in the case of joint holders, to the registered address of that one of the joint holders who is first named on the register of members, or to such person and to such address as the holder or jointholders may in writing direct.
2. Every such electronic transfer, cheque or warrant shall be made payable to the order of the person to whom it is sent or to such person as the holder or joint holders may, direct the payment of the cheque or warrant if purporting to be duly endorsed shall be a good discharge to the Company. Payment in any way whatsoever shall be made at the risk of the person entitled to the money represented thereby.



115. Any one of two or more joint holders of a share may give effective receipts for any dividends, bonuses or other monies payable in respect of such share.
116. Notice of any dividend that may have been declared shall be given to the persons entitled to share thereto in the manner mentioned in the Act.
117. No dividend shall bear interest against the Company.

### **Accounts**

118. 1. The books of account and books and papers of the Company, or any of them, shall be open to the inspection of Directors in accordance with the applicable provisions of the Act and the Rules.
2. The Board of Directors shall from time to time determine whether and to what extent and at what times and places and under what conditions or regulations the accounts and books and documents of the Company or any of them shall be open to the inspection of the members, and no member (not being a Director) shall have any right of inspecting any account or books or documents of the Company except as conferred by statute or authorised by the Board or by the resolution of the Company in General Meeting.

### **Winding up**

119. Subject to the applicable provisions of the Act and the Rules made there under-
1. If the Company shall be wound up, the liquidator may, with the sanction of a special resolution of the Company and any other sanction required by the Act, divide amongst the members, in specie or kind, the whole or any part of the assets of the Company, whether they shall consist of property of the same kind or not.
2. For the purpose aforesaid, the liquidator may set such value as he deems fair upon any property to be divided as aforesaid and may determine how such division shall be carried out as between the members or different classes of members.
3. The liquidator may, with the like sanction, vest the whole or any part of such assets in trustees upon such trusts for the benefit of the contributories if he considers necessary, but so that no member shall be compelled to accept any shares or other securities whereon there is any liability.

### **Indemnity and Insurance**

120. 1. Subject to the provisions of the Act, the Managing Director and every Director, Manager, Company Secretary and other Officer or Employee of the Company shall be indemnified by the Company against any liability, and it shall be the duty of Directors out of the funds of the Company to pay, all costs and losses and expenses (including travelling expenses) which any such Director, Officer or employee may incur or become liable to by reason of any contract entered into or act or deed done by him as such Managing Director, Director, Company Secretary, Officer or Employee or in any way in the discharge of his duties.
2. Subject as aforesaid the Managing Director and every Director, Manager, Company Secretary, or other Officer or Employee of the Company shall be indemnified against any liability incurred by them or him in defending any proceedings, whether civil or criminal in which judgment is given in their or his favour or in which he is acquitted or discharged or

in connection with any application under applicable provisions of the Act in which relief is given to him by the Court.

3. The Company may take and maintain any insurance as the Board may think fit on behalf of its present and/or former Directors and Key Managerial Personnel for indemnifying all or any of them against any liability for any acts in relation to the Company for which they may be liable but have acted honestly and reasonably.
4. Subject to the provisions of the Act no Director or other Officer of the Company shall be liable for the act, receipts, neglects or defaults of any other Director or Officer, or for joining in any receipt or other act for conformity or for any loss or expense happening to the company, or for the insufficiency or deficiency of title to any property acquired by order of the Directors for or on behalf of the Company, or for the insufficiency or deficiency of any security in or upon which any of the moneys or the company shall be invested, or for any loss or damage arising from the bankruptcy, insolvency, or tortuous act of any person, company or corporation, with whom any moneys, securities or effects shall be entrusted or deposited or for any loss occasioned by any error of judgment or oversight on his part, or for any other loss or damage or misfortune whatever which shall happen in the execution of the duties of his officer or in relation thereto unless the same happen through his own willful act or default.

#### **General Power**

121. Wherever in the Act, it has been provided that the Company shall have any right, privilege or authority or that the Company could carry out any transaction only if the Company is so authorized by its articles, then and in that case this Article authorizes and empowers the Company to have such rights, privileges or authorities and to carry such transactions as have been permitted by the Act, without there being any specific Article in that behalf herein provided.

#### **Secrecy Clause**

122. No member shall be entitled to inspect the Company works without the permission of the Director, or Managing Director, or to require discovery of or any information respecting any details of the Company's manufacturing process, technology, marketing strategies or any matter which is or may be in the nature of a trade secret, mystery of trade or secret process which may relate to the conduct of the business of the Company and which in the opinion of the Directors it will be inexpedient in the interests of the Company to communicate to the public.
123. Every Director, Managing Director, Manager, Company Secretary, Auditor, Trustee, Members of a Committee, Officer, Servant, Agent, Accountant or other person employed in the business of the Company, shall if so required by the Directors before entering upon his duties, or at any time during his term of office, sign a declaration pledging himself to observe strict secrecy respecting all transactions of the Company and the state of accounts and in matters relating thereto, and shall by such declaration pledge himself not to reveal any of the matters which may come to his knowledge in the discharge of his duties except when required so to do by the Directors or any meeting or by a Court of Law or by the person to whom such matters relate and expect so far as may be necessary in order to comply with any of the provisions of these Articles or law.

| Sl. No. | Names, Addresses, Description, Occupations and Signatures of the Subscribers                                                                  | Name, Address, Description, Occupation and Signature of the Witness                                                                                         |
|---------|-----------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1.      | <p>Sd/-</p> <p><b>C. Nageswara Rao</b><br/>S/o. Venkata Subbaiah<br/>Second Lean,<br/>Chandra Mouli Nagar,<br/>Guntur</p> <p>Occ : Doctor</p> | <p>Sd/-</p> <p><b>V. Amamath</b><br/>S/o. V. Anjaneyulu<br/>Chartered Accountant<br/>206, Santhoshima Complex,<br/>RTC 'X' Roads Musheerabad, Hyderabad</p> |
| 2       | <p>Sd/-</p> <p><b>C. Hari Prasad</b><br/>S/o. C. Nageswara Rao<br/>Second Lane,<br/>Chandra Mouli Nagar,<br/>Guntur</p> <p>Occ. : Doctor</p>  |                                                                                                                                                             |

Place : Hyderabad

Date : 26.02.1991



**HIGH COURT OF JUDICATURE AT HYDERABAD  
FOR THE STATE OF TELANGANA AND THE STATE OF ANDHRA PRADESH  
(Original Jurisdiction)**



TUESDAY, THE TWENTY THIRD DAY OF SEPTEMBER  
TWO THOUSAND AND FOURTEEN

:PRESENT:

**THE HON'BLE SRI JUSTICE C.V.NAGARJUNA REDDY**

**COMPANY PETITION NO: 144 of 2014  
CONNECTED WITH  
COMPANY APPLICATION NO : 709 OF 2014**

IN THE MATTER OF THE COMPANIES ACT, 1956 (1 OF 1956)  
AND  
IN THE MATTER OF SECTIONS 391 TO 394 OF  
THE COMPANIES ACT, 1956  
AND  
IN THE MATTER OF AUCTUS PHARMA LIMITED  
AND  
IN THE MATTER OF SCHEME OF ARRANGEMENT  
BETWEEN  
AUCTUS PHARMA LIMITED ....Transferor Company  
AND  
GRANULES INDIA LIMITED .....Transferee Company  
AND  
THEIR RESPECTIVE SHAREHOLDERS

Between:

Auctus Pharma Limited, A Company incorporated under the Companies Act, 1956, and having its registered office at 2<sup>nd</sup> Floor, 3<sup>rd</sup> Block, My Home Hub, Madhapur, Hyderabad 500 081 Represented by its Director, Sri VVS Murthy

..... Petitioner Company

Petition to sanction the Scheme of Arrangement under Section 391(2) read with Section 394 of the Companies Act, 1956, praying:

i) the Scheme of Arrangement may be sanctioned by this Hon'ble Court, so as to be binding on all the shareholders and creditors of the Petitioner Company and of Transferee Company respectively, and on the said Petitioner Company with effect from the Appointed Date.

ii) the notice to Central Government under Section 394A of the Companies Act, 1956 be issued to the Regional Director, South Eastern Region, Ministry of Corporate Affairs, Hyderabad, the Registrar of Companies, at Hyderabad and the Official Liquidator, High Court of Judicature at Hyderabad for the State of Telangana and for the State of Andhra Pradesh.

iii) the Notice of Petition be directed to be published in Hyderabad edition of the "Business Standard" the English daily newspaper and in the Hyderabad edition of "Surya", the Telugu daily newspaper.

iv) the Petitioner Company be dissolved without winding up with effect from the Effective Date as per the Scheme of Arrangement.





This Petition coming on for orders on 23/09/2014 upon reading the Company Petition and the affidavit dated 04/07/2014 filed by Sri.V.V.S.Murthy, Director of the Petitioner Company in support of the petition, and upon perusing the Order dated 24/06/2014 made in CA No.709/2014 and this reports filed by the Regional Director, South Eastern Region, and the Official Liquidator and on being satisfied and that the hearing of the Company Petition has been duly advertised and upon hearing the arguments of Sri.L.V.V.Iyer Advocate, for the Petitioner, and of Sri.M.Anil Kumar, counsel for the Official Liquidator, and of Sri.M.B.Appa Rao, Advocate, appearing for Sri.M.Narayana Reddy, Assistant Solicitor General, for Central Government.

**THIS COURT DOTH ORDER**

1. That the Company Petition be and hereby is allowed
2. That the scheme of amalgamation be and hereby is sanctioned w.e.from the appointed dated i.e. 01/04/2013 and doth hereby declare the same to be binding on all the shareholders and employees and creditors, of the petitioner the transferor company and the transferee company.
3. That all the property, rights and powers of the transferor company specified in the first, and second parts of the scheme hereto and all other property, rights and powers of the transferor company be transferred without further act or deed to the transferee company and accordingly the same shall pursuant to section 394(2) of the companies Act, 1956, be transferred to and vest in the transferee company for all the estate and interest of the transferor company therein but subject nevertheless to all charges now affecting the same
4. That all the liabilities and duties of the transferor company be transferred without further act or deed to the transferee company and accordingly the same shall, pursuant to section 394(2) of the Companies Act, 1956, be transferred to and become the liabilities of the transferee company; and
5. That all proceedings now pending by or against the transferor company be continued by or against the transferee company; and
6. That since the Transferor Company, a wholly owned subsidiary of the Transferee company is being amalgamated into the Transferee Company there would be no issue of shares pursuant to the amalgamation. The entire share capital of the Transferor Company held by the Transferee Company shall stand cancelled upon the scheme being effective in terms thereof, as per clause 8 of the scheme.
7. That the authorized capital of the Transferor Company shall stand added to and clubbed with the authorized capital of the Transferee Company without payment of any fees or stamp duty.
8. That the Transferor company and Transferee company do within 30 days from the date of this order cause a certified copy of this order to be delivered to the Registrar of Companies for and take all other consequential actions in pursuance of sanction of the scheme of amalgamation, and on such certified copy being so delivered the transferor company shall be dissolved without being wound up.

9. That any person interested shall be at liberty to apply to the court on the above matter for any directions that may be necessary.



### SCHEDULE

PART – I of the Scheme : definition

PART – II of the Scheme : Amalgamation.

Dated this 23<sup>rd</sup> day of September 2014.

(By the Court)

Note: The Scheme of Arrangement for Amalgamation enclosed herewith.

SD/-T.LAKSHMI HEMALATHA  
JOINT REGISTRAR

//TRUE COPY//

*[Signature]*  
SECTION OFFICER

To  
To

1. Sri.V.V.S.Murthy, Director, Auctus Pharma Limited, Regd. Office at 2<sup>nd</sup> Floor, 3<sup>rd</sup> Block, My Home Hub, Madhapur, Hyderabad.
2. The Authorised Signatory, Granules India Limited, Regd. Office at 2<sup>nd</sup> Floor, 3<sup>rd</sup> Block, My Home Hub, Madhapur, Hyderabad.
3. The Official Liquidator, High Court of A.P. Hyderabad, Office at 5-4-400, II Floor, East Wing, Gagan Vihar Building, Opp: Gandhi Bhavan, Nampally, Hyderabad.
4. The Registrar of Companies, 3-5-398, C.P.W.D. Building, Kendriya Sadan, Sultan Bazar, Koti, Hyderabad.
5. The Regional Director, South Eastern Region, Ministry of Corporate Affairs, Hyderabad, Office at II Floor, Kendriya Sadan, Sultan Bazar, Koti, Hyderabad.
6. Two CD Copies
7. One cc to Sri.L.V.V.Iyer, Advocate (OPUC)

Kj.

*[Signature]*

*[Signature]*  
**SUPERINTENDENT**  
**Copyist Department**  
High Court of Judicature at Hyderabad  
for the State of Telangana and the  
State of Andhra Pradesh

High Court of Judicature at Hyderabad  
for the State of Telangana and the  
State of Andhra Pradesh

CP No. 748 2014  
Application made 23-9- 2014  
Application returned 2014  
Application represented 2014  
Stamps called for 10-11- 2014  
Stamps deposited 14-11- 2014  
Addl. Stamps called for 2014  
Addl. Stamps deposited 2014  
Copy ready 14-11- 2014

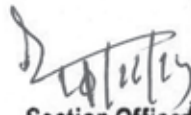
  
Section Officer



Exhibit - IV

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**SCHEME OF ARRANGEMENT**

**BETWEEN**

**AUCTUS PHARMA LIMITED**

**(Transferor Company)**

**AND**

**GRANULES INDIA LIMITED**

**(Transferee Company)**

**AND**

**THEIR RESPECTIVE SHAREHOLDERS**



**WHEREAS:**

- A. **GRANULES INDIA LIMITED** ('Granules') is a Company formed and registered under the Companies Act 1956 having its registered office at 2nd Floor, 3<sup>rd</sup> Block, My Home Hub, Madhapur, Hyderabad (AP) 500 081.
- B. **AUCTUS PHARMA LIMITED** ('Auctus') is a Company formed and registered under the Companies Act 1956 having its registered office at 2nd Floor, 3<sup>rd</sup> Block, My Home Hub, Madhapur, Hyderabad (AP) 500 081. Auctus Pharma Limited is a wholly owned subsidiary of Granules India Limited.
- C. This Scheme of Arrangement (hereinafter referred to as the "Scheme") involves the amalgamation of a wholly owned subsidiary i.e. Auctus Pharma Limited (the "Transferor Company"), with its holding company, i.e. Granules India Limited (the "Transferee Company") pursuant to Section 391 and 394(1) of the Companies Act, 1956, which has been set forth in Part II herein under.
- D. On the basis of discussions, meetings and consultations between members of the Boards of Directors of the Transferor Company and the Transferee Company, legal and other professional consultants, it has been decided to take appropriate steps to carry out effectively and efficiently the amalgamation of the above mentioned Transferor Company with the Transferee Company in the larger interest of the shareholders of the above mentioned Companies.

**For AUCTUS PHARMA LIMITED**

**Director**



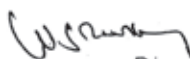


E. The Scheme of Arrangement will benefit the Transferor Company, the Transferee Company and their respective shareholders. The rationale and reasons for the proposed Scheme of Arrangement, inter alia, are summarized below:

would enable focused strategic leadership and top management attention to be bestowed on the Undertaking of the Transferor Company so as to integrate the business synergies and reap the benefits of consolidation.

- would channelize synergies; enable optimum utilization of the available resources, broadening the customer base besides enabling a focused business approach for achieving optimization.
- would enable to achieve higher long-term financial returns and inculcation of greater financial strength and flexibility than could be achieved by the companies individually.
- would enable the Transferee Company to have diversified product portfolio which would enable it to manage risks in a better way.
- Would enable the Transferee Company to make value added products from Transferor Company's Active Pharmaceutical Ingredients to make Finished Dosages and Pharmaceutical Formulations Intermediates which would give higher returns and also exploit its customer base to increase exports of such products which could result in higher foreign exchange earnings to the country and to the transferee company
- would result in greater rationalization and help reduce duplication of systems and processes.
- would result in more efficient and more cost effective management system in view of consolidation of operations and larger size as the Transferor and Transferee are involved in the same line of business.
- would be beneficial for pooling of financial, managerial and technical resources, personnel capabilities, skills, expertise and technologies of the merging companies leading to increased competitive strength.

For AUCTUS PHARMA LIMITED

  
Director



In view of the above benefits, the proposed amalgamation would result in an enhanced shareholder value.



- F. This Scheme involves the amalgamation of the Transferor Company with the Transferee Company which has been set forth in Part II, as follows:

The transfer and vesting of the Undertaking of the Transferor Company, pursuant to Part II, by Auctus Pharma Limited, the Transferor Company to Granules India Limited, the Transferee Company, pursuant to Section 391 and Section 394(1) (a) of the Companies Act, 1956.

- G. The Scheme also makes provisions for various other matters consequential, incidental or related thereto and otherwise integrally connected therewith-in Part II, which are common for the arrangement set out in Part II. Part I of this Scheme deals with the definitions of the expressions used in arrangement set out in Part II and details in respect of the incorporation and share capital of the Transferor Company and the Transferee Company.

#### PART – I

##### 1. DEFINITIONS

In this Scheme, unless repugnant to the meaning or context thereof, the following expressions shall have the following meanings:

- (i) “Act” means the Companies Act, 1956 and any amendments and/or re-enactment thereof, for the time being in force.
- (ii) “Appointed Date” means 1<sup>st</sup> April 2013 or such other date as may be fixed by the High Court of Judicature at Hyderabad for the State of Telangana and the State of Andhra Pradesh .
- (iii) “Board” means the board of directors of the Transferor Company or of the Transferee Company, as the case may be, including any duly constituted committee thereof.
- (iv) “Effective Date” means the date on which the certified copies of the Order of the High Court of Judicature of Andhra Pradesh at Hyderabad or any other Court or authority of appropriate jurisdiction sanctioning the Scheme are filed with the Registrar of Companies, Andhra Pradesh.

For AUCTUS PHARMA LIMITED

Director

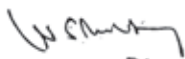


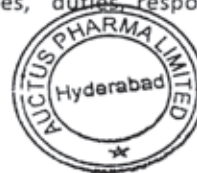


- (v) 'Transferor Company' means Auctus Pharma Limited ('Auctus'), a Company formed and registered under the Companies Act 1956 having its registered office at 2nd Floor, 3<sup>rd</sup> Block, My Home Hub, Madhapur, Hyderabad (AP) 500 081.
- (vi) 'Transferee Company' means Granules India Limited, a Company formed and registered under the Companies Act 1956 having its registered office at 2nd Floor, 3<sup>rd</sup> Block, My Home Hub, Madhapur, Hyderabad (AP) 500 081.
- (vii) "Scheme" means the Scheme of Arrangement as set out herein or with any modifications approved or imposed or directed by the High Court of Judicature of Andhra Pradesh at Hyderabad or authority of appropriate jurisdiction sanctioning the Scheme, as the case may be.
- (viii) "Undertaking of the Transferor Company" includes :-
- (a). all the assets and property of the Transferor Company as on the Appointed Date;
  - (b). all debts, liabilities, duties, responsibilities and obligations of the Transferor Company as on the Appointed Date;

Without prejudice to the generality of the above, (i) the assets and property of the Transferor Company shall include the entire businesses and all rights, privileges, powers and authorities and all property, movable or immovable, real, corporeal or incorporeal, leasehold or otherwise, in possession or reversion, present or contingent of whatever nature and wheresoever situate, including fixed assets, if any, capital works in progress, current assets, investment of all kind, approvals, permissions, consents, exemptions, registrations, no-objection certificates and certifications, permits, quotas, rights, entitlements, tenancies, roof rights, trademarks, service marks, know-how, technical know-how, trade names, descriptions, trading style, franchises, labels, label designs, colour schemes, utility models, holograms, bar codes, designs, patents, copyrights, privileges and any rights, title or interest in intellectual property rights, benefits of security arrangements, contracts, agreements and all other rights including lease rights, licenses including those relating to trademarks, or service marks, easements, advantages, exemptions, benefits, powers and facilities of every kind, nature and description whatsoever of the Transferor Company or to which the Transferor Company is entitled including right to use of telephones, telex, facsimile connections and installations, electricity, power lines, communication lines and other services; reserves, deposits, provisions, funds, subsidies, grants, tax credits, and any accretions or additions arising to any of the foregoing on and after the Appointed Date and (ii) all the debts, liabilities, duties responsibilities and

For AUCTUS PHARMA LIMITED

  
Director





obligations of the Transferor Company including all its obligations of whatsoever kind and liabilities which have arisen or accrued on or after the Appointed Date.

- (ix) References in the Scheme to "upon the Scheme becoming effective" or "effectiveness of the Scheme" shall mean the Effective Date.

2. The Capital Structure of the Transferor Company and the Transferee Company as are parties to the present Scheme, is as under:

(I) Transferor Company

The Capital Structure of the Transferor Company as at 31<sup>st</sup> March 2013 is as follows:

| SHARE CAPITAL                                                                                       | Rs.         |
|-----------------------------------------------------------------------------------------------------|-------------|
| AUTHORISED CAPITAL:<br>45,00,000 Equity Shares of Rs. 10/- each                                     | 4,50,00,000 |
| ISSUED, SUBSCRIBED AND PAID-UP CAPITAL:<br>39,00,000 Equity Shares of Rs. 10/- each, fully paid up. | 3,90,00,000 |

As on date, the entire issued and subscribed share capital is entirely held by the Transferee Company and its nominees.

(ii) Transferee Company

The Capital Structure of the Transferee Company as at 31<sup>st</sup> March 2013 is as follows:

| SHARE CAPITAL                                                                         | Rs.          |
|---------------------------------------------------------------------------------------|--------------|
| AUTHORISED CAPITAL:<br>3,00,00,000 Equity Shares of Rs.10/- each.                     | 30,00,00,000 |
| ISSUED, SUBSCRIBED AND PAID UP CAPITAL:<br>2,01,26,154 Equity Shares of Rs.10/- each. | 20,12,61,540 |

D

During the current year, on account of allotment of fresh equity shares as per under mentioned, the issued, subscribed and paid up equity share capital as on date stands at Rs. 20,28,11,540 comprising 2,02,81,154 Equity Shares of Rs.10/- each. The details of the share allotment during the year are as under:

| SHARE CAPITAL                                                               | Rs.          |
|-----------------------------------------------------------------------------|--------------|
| ISSUED, SUBSCRIBED AND PAID UP CAPITAL AS ON 31 <sup>ST</sup> MARCH 2013    | 20,12,61,540 |
| ALLOTMENT ON 25 <sup>TH</sup> APRIL 2013                                    | 50,000       |
| ALLOTMENT ON 12 <sup>TH</sup> JUNE 2013                                     | 1,60,000     |
| ALLOTMENT ON 11 <sup>TH</sup> JULY 2013                                     | 7,20,000     |
| ALLOTMENT ON 2 <sup>ND</sup> AUGUST 2013                                    | 1,10,000     |
| ALLOTMENT ON 13 <sup>TH</sup> AUGUST 2013                                   | 90,000       |
| ALLOTMENT ON 31 <sup>ST</sup> AUGUST 2013                                   | 1,30,000     |
| ALLOTMENT ON 16 <sup>TH</sup> OCTOBER 2013                                  | 50,000       |
| ALLOTMENT ON 31 <sup>ST</sup> DECEMBER 2013                                 | 2,40,000     |
| ISSUED, SUBSCRIBED AND PAID UP CAPITAL AS ON 31 <sup>ST</sup> DECEMBER 2013 | 20,28,11,540 |

For AUCTUS PHARMA LIMITED

*[Signature]*  
Director



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PART II

*Amalgamation*

- 3.1 (a). With effect from the Appointed Date and upon the Scheme becoming effective, all the assets and properties, both movable and immovable, investments, rights, title and interests comprised in the Undertaking of the Transferor Company shall pursuant to the Scheme being sanctioned by the High Court under Section 394(2) of the Act and without any further act or deed be transferred to, and vested in, or deemed to have been transferred to, and vested in, the Transferee Company so as to become as and from the Appointed Date, the estate, assets, rights, title and interests of the Transferee Company subject to Clause 3.2 of this Scheme in relation to charges thereon in favour of bank(s).
- (b). With effect from the Appointed Date and upon the Scheme becoming effective, all rights and licenses relating to trademarks, know-how, technical know-how, trade names, descriptions, trading style, franchises, labels, label designs, colour schemes, utility models, holograms, bar codes, copyrights, privileges and any rights, title or interest in intellectual property rights (including applications submitted to the registration authorities on or before the Effective Date by the Transferor Company), tenancies, if any, with the consent of the landlord wherever necessary, powers, facilities of every kind and description of whatsoever nature in relation to the Undertaking of the Transferor Company to which the Transferor Company is a party or to the benefit of which the Transferor Company may be entitled/eligible and which are subsisting or have effect immediately before the Appointed Date, shall be in full force and effect on, or against, or in favour of, the Transferee Company as the case may be, and may be enforced as fully and effectually as if, instead of the Transferor Company, the Transferee Company had been a party or beneficiary or obligee thereto.
- (c). In particular, with effect from the Appointed Date and upon the Scheme becoming effective, all licenses, sanctions, consents, authorization, approvals and permissions (whether statutory or otherwise) of the Transferor Company pertaining to the conduct of its business (including, without limitation, benefits, remissions, special reservations, exemption available to the Transferor Company, under any income tax, sales tax (including any benefits related to the deferment of sales tax) and excise (whether modvat or cenvat) laws (whether such laws be enacted at the central and/or state levels including excise credits), shall vest in the Transferee Company and the concerned licensors and grantors of such approvals or permissions, shall endorse and record the Transferee Company on such approvals and permissions so as to empower and ~~confirm~~ the approval



For AUCTUS PHARMA LIMITED

*W. S. Srinivas*  
Director



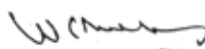


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and vesting of the Undertaking of the Transferor Company in the Transferee Company without hindrance or let from the Appointed Date.

- (d). All assets and properties as are moveable in nature, including investments, or are otherwise capable of transfer by physical delivery or by endorsement and delivery, shall stand so transferred by each of the Transferor Company, without requiring any deed or instrument of conveyance for the same and shall become the property of the Transferee Company accordingly and such transfer shall be deemed to have taken place at the Registered Office of the Transferee Company in the State of Andhra Pradesh.
- (e). All debts, outstanding and receivables of the Transferor Company shall accordingly, on and from the Appointed Date and upon the Scheme becoming effective, stand transferred to and vested in the Transferee Company without any notice or other intimation to the debtors (though the Transferee Company may; if it deems appropriate, give notice to the debtors that the debts stand transferred and vested in the Transferee Company) and the debtors shall be obliged to make payment to the Transferee Company after the Effective Date.
- (f). The transfer/vesting, as aforesaid, shall be subject to existing charges/hypothecation/mortgage (if any as may be subsisting) over or in respect of the said assets or any part thereof. Provided, however, that any reference in any security documents or arrangements to which the Transferor Company is a party, to such assets of such Transferor Company offered or agreed to be offered as security for any financial assistance both availed and to be availed up to any limit for which sanctions have already been obtained by such Transferor Company shall be construed as reference only to the assets pertaining to such Transferor Company as are vested in the Transferee Company by virtue of this Clause to the end and intent that such security, mortgage and/or charge shall not extend or be deemed to extend to any of the assets or to any of the other units or divisions of the Transferee Company, unless specifically agreed to by the Transferee Company with such secured creditor(s).
- (g). All assets including investments acquired and liabilities incurred by the Transferor Company after the Appointed Date but prior to the Effective Date in relation to the Undertaking of the Transferor Company shall also without any further act, instrument or deed stand transferred to and vested in or be deemed to have been transferred to or vested in the Transferee Company upon the coming into effect of this Scheme.

For AUCTUS PHARMA LIMITED

  
Director



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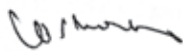


### 3.2. TRANSFER OF LIABILITIES



- (i). With effect from the Appointed Date and upon the Scheme becoming effective, all debts (whether secured or unsecured), liabilities (including contingent liabilities, whether disclosed or undisclosed), taxes, duties and obligations of every kind, nature and description of the Transferor Company along with any charge, encumbrance, lien or security thereon shall also be vested and stand transferred to and be deemed to be and stand vested in the Transferee Company without any further act, or instrument or deed pursuant to the Scheme being sanctioned by the High Court under Section 394(2) of the Act so as to become the debts, liabilities, duties and obligations of the Transferee Company from the Appointed Date and further that it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such debts, liabilities, duties and obligations have arisen in order to give effect to the provisions of this clause.
- (ii). With effect from the Appointed Date and upon the Scheme becoming effective, all the existing securities, mortgages, charges, encumbrances or liens (the Encumbrances), if any created by the Transferor Company after the Appointed Date, in terms of this Scheme, over the assets comprised in the Undertaking of the Transferor Company, transferred to the Transferee Company, by virtue of this Scheme and in so far as such Encumbrances secure or relate to the liabilities of such Transferor Company, the same shall, after the Effective Date continue to relate and attach to such assets or any part thereof to which they are related or attached prior to the Effective Date and as are transferred to the Transferee Company.
- (iii). Any reference in any security documents or arrangements (to which the Transferor Company is a party) to Transferor Company and its assets and properties, shall be construed as a reference to the Transferee Company and the assets and properties of Transferor Company, transferred to the Transferee Company by virtue of this Scheme. Without any prejudice to the foregoing provisions and upon the effectiveness of this Scheme, the Transferee Company shall execute any and all instruments or documents or do all the acts and deeds as may be required, including the filing of necessary particulars and/or modification(s) of charges, with the Registrar of Companies, Andhra Pradesh to give formal effect to the above provisions, if required.
- (iv). The Scheme shall not operate to enlarge the security of any loan, deposit, mortgages, charges, encumbrances, liens or facility created by or available to the

For AUCTUS PHARMA LIMITED

  
Director



Transferor Company which shall vest in the Transferee Company by virtue of the Scheme and the Transferee Company shall not be obliged to create any further or additional security therefore after the Scheme has become effective or otherwise.

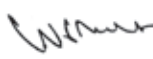


### 3.3 ACCOUNTING TREATMENT

Upon the scheme becoming effective, Transferee Company shall account for the amalgamation in its books of account with effect from the Appointed Date as under:

- (a) Amalgamation of the Transferor Company with the Transferee Company shall be accounted for in accordance with "Purchase Method" of accounting as per Accounting Standard – 14 as notified under Section 211 (3C) of the Act.
- (b) All the assets, including but not limited to fixed assets, existing in India or outside India, intangibles and any other assets, whether recorded in the books or not, of the Transferor Company and transferred to and vested in Transferee Company pursuant to the Scheme, subject to clause 3.3(d) of this Scheme, shall be recorded by Transferee Company at their respective fair values,.
- (c) All liabilities of Transferor Company and transferred to and vested in Transferee Company, subject to clause 3.3(d) of this Scheme, shall be recorded by Transferee Company at their respective book values.
- (d) Intercompany loans, investments and other balances and obligations, if any, on the Appointed Date shall stand cancelled and extinguished.
- (e) After giving effect to Clause 3.3(a) to 3.3(d) above, any excess of the aggregate value of the liabilities over the aggregate value of the assets of the Transferee Company shall be recognized in the Transferee Company's financial statements as Goodwill. If the aggregate value of liabilities of the Transferee Company is lower than the aggregate value of the assets of the Transferee Company, the difference shall be treated as Capital Reserve.
- (f) In case of any difference in accounting policy between the Transferor Company and the Transferee Company, the impact of the same till the Appointed Date will be quantified and recorded in accordance with applicable Accounting Standards notified under Section 211 (3C) of the Act to ensure that the financial statements of the Transferee Company reflect the financial position on the basis consistent accounting policy.

For AUCTUS PHARMA LIMITED

  
Director



- (g) This Scheme is in compliance with Section 2 (1B) of the Income Tax Act, 1961 and is intended to be implemented accordingly.



#### CONTRACTS, DEEDS AND OTHER INSTRUMENTS

- (a). With effect from the Appointed Date and upon the Scheme becoming effective, all contracts, deeds, bonds, agreements, schemes, arrangements and other instruments of whatsoever nature in relation to the Undertakings of the Transferor Company to which the Transferor Company is a party or to the benefit of which the Transferor Company may be entitled/eligible, and which are subsisting or have effect immediately before the Appointed Date, shall be in full force and effect on, or against, or in favour of the Transferee Company and may be enforced as fully and effectually as if, instead of the Transferor Company, the Transferee Company had been a party or beneficiary or obligee thereto.
- (b). For the avoidance of all doubt, it is expressly made clear that the transfer of respective Undertakings of the Transferor Company as contemplated herein, shall not affect the previous operation of any contract, agreement, deed or any instrument or the like to which the Transferor Company is a party or is the beneficiary of (as the case may be) and any reference in such agreements, contracts, deeds and instruments to the Transferor Company shall be construed as reference only to the Transferee Company with effect from the Effective Date.
- (c). The resolutions, if any, of the Transferor Company which are valid and subsisting on the Effective Date, shall continue to be valid and subsisting and be considered as resolutions of the Transferee Company and if any such resolutions have upper monetary or other limits being imposed under the provisions of the Act, or any other applicable provisions, then the said limits shall be added and shall constitute the aggregate of the said limits in the Transferee Company.

#### 5. LEGAL PROCEEDINGS

On and from the Appointed Date and upon the Scheme becoming effective, all suits, actions and other legal proceedings by or against each of the Transferor Company under any statute or otherwise, whether pending, or arising, before the Appointed Date shall be continued and enforced by or against the Transferee Company.

#### 6. EMPLOYEES

- (a). All permanent employees, if any, of the Transferor Company as on the Effective Date shall as from such date, become employees of the Transferee Company in such position, rank and designation as may be determined by the Transferee Company with the benefit of continuity of service and such that the terms and

For AUCTUS PHARMA LIMITED

*W. S. Srinivas*  
Director







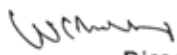
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conditions of their employment with the Transferee Company are not less favourable than those applicable to them as employees of the Transferor Company on such date. With regard to provident fund, gratuity fund, superannuation fund or any other special fund created or existing for the benefit of such employees of the Transferor Company, from the Effective Date the Transferee Company shall stand substituted for the Transferor Company for all purposes whatsoever in relation to the administration or operation of such fund or funds and the obligation to make contributions to the said fund or funds in accordance with the provisions thereof as per the terms provided in the respective trust deeds or other documents provided that if the Transferee Company considers it desirable for the smooth administration, management, operation and uniformity of such funds, the same may be merged with similar funds of the Transferee Company.

It is the aim and intent of the Scheme that all the rights, duties, powers and obligations of the Transferor Company in relation to such schemes or funds shall become those of the Transferee Company. It is clarified that the services of the employees of the Transferor Company will be treated as having been continuous for the purpose of the aforesaid schemes, funds and trusts.

- (b). In the event that trustees are constituted as holders of any securities, trust funds or trust monies, in relation to any provident fund trust, gratuity trust or superannuation trust of the Transferor Company, such funds shall be transferred by such trustees of the trusts of the Transferor Company, to separate trusts and the trustees of the Transferee Company set up for the same purpose and object and shall be deemed to be a transfer of trust property from one set of trustees to another set of trustees in accordance with the provisions of the relevant labour laws, Indian Trusts Act 1882, and the Income Tax Act, 1961 and relevant stamp legislations as applicable provided that if the Transferee Company considers it desirable for the smooth administration, management, operation and uniformity of such trusts of the respective Transferor Company, the same may be merged with similar trusts of the Transferee Company. Appropriate deeds of trusts and/or documents for transfer of trust properties shall be simultaneously executed upon the sanction of the Scheme in accordance with the terms hereof by the trustees of such trusts in favour of the trusts of the Transferee Company so as to continue the benefits of the employees. The provident fund trust, gratuity trust or superannuation trusts of the respective Transferor Company shall continue to hold such securities, trust funds and/or trust monies as hithertofore, till such time as the transfer to the trustees of the Transferee Company employee trusts is made.

For AUCTUS PHARMA LIMITED

  
Director



- (c). The Transferee Company undertakes to continue to abide by any agreement(s)/settlement(s) entered into by the Transferor Company with any employees of the Transferor Company. The Transferee Company agrees that for the purpose of payment of any retrenchment, compensation, gratuity and other terminal benefits, the past services of such employees with the Transferor Company shall also be taken into account, and agrees and undertakes to pay the same as and when payable.



BUSINESS AND PROPERTY IN TRUST FOR THE TRANSFEE COMPANY

With effect from the Appointed Date and up to and including the Effective Date:

- (a). the Transferor Company shall carry on its business activities with reasonable diligence and business prudence and shall conduct its businesses in the ordinary course consistent with past practice.
- (b). Until the Effective Date and subject to such consents as may be necessary :
  - (i). the Transferor Company shall carry on and be deemed to have carried on its businesses and activities and shall hold and stand possessed of and shall be deemed to have held and stood possessed of the Undertaking of the Transferor Company on account of and in trust for the Transferee Company and the Transferor Company shall be entitled to sell or transfer any property or assets to any party including the Transferee Company, with the prior written consent of the Transferee Company;
  - (ii). all the profits or incomes accruing or arising to the Transferor Company or expenditure or losses incurred by the Transferor Company shall for all purposes be treated and be deemed to be and accrue as profits or incomes or expenditure or losses of the Transferee Company ;

**8.0 NO ISSUE OF SHARES BY TRANSFEE COMPANY**

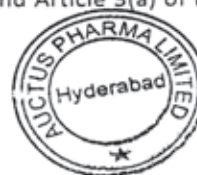
Since the Transferor Company, a wholly owned subsidiary of the Transferee Company, is being amalgamated into the Transferee Company there would be no issue of shares pursuant to the amalgamation. The entire share capital of the Transferor Company held by the Transferee Company shall stand cancelled upon the scheme being effective in terms hereof.

**9.0 CLUBBING OF THE AUTHORISED CAPITAL OF THE TRANSFEROR COMPANIES**

Upon the Scheme becoming effective, the authorized capital of the Transferor Company shall stand added to and clubbed with the authorized capital of the Transferee Company without payment of any fees or stamp duty and the relevant clause V of the Memorandum of Association of the Transferee Company and Article 3(a) of the Articles

For AUCTUS PHARMA LIMITED

*W. Manoj*  
Director





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of Association of the Transferee Company shall be replaced accordingly and without any further act or deed, and the resultant authorized capital of the Transferee Company shall on and after the Effective Date be as follows:

| SHARE CAPITAL                             | Rs.          |
|-------------------------------------------|--------------|
| AUTHORISED CAPITAL                        |              |
| 3,45,00,000 Equity Shares of Rs.10/- each | 34,50,00,000 |

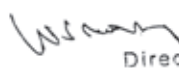
#### 10.0 DISSOLUTION OF THE TRANSFEROR COMPANY

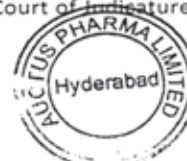
With effect from the Effective Date, the Transferor Company shall stand dissolved without being wound up.

#### 11. APPROVALS AND MODIFICATIONS

- (a). The Transferor Company and the Transferee Company may jointly assent from time to time on behalf of all persons concerned to any modifications or amendments or additions to the Scheme or to any conditions or limitations which the High Court of Andhra Pradesh and/or the other competent authorities, if any, under any law, may deem fit and approve of or impose and which the Transferor Company and the Transferee Company may in their discretion deem fit and may resolve all doubts or difficulties that may arise for carrying out the Scheme and do and execute all acts, deeds, matters and things necessary for bringing the Scheme into effect. The aforesaid powers of the Transferor Company and the Transferee Company may be exercised by their respective boards of directors, a committee or committees of the board concerned or any director (hereafter referred as the "delegates").
- (b). For the purpose of giving effect to the Scheme or any modifications or amendments thereof or additions thereto the delegate(s) of the Transferor Company and the Transferee Company may jointly give and are hereby authorized respectively to determine and give all such directions as are necessary including directions for settling or removing any difficulties, as the case may be, which shall be binding on all parties in the same manner as if the same were specifically incorporated in the Scheme.
- (c). After the dissolution of the Transferor Company, the Transferee Company acting through its board of directors or other persons, duly authorized by its board in this regard, shall be authorized, to take such steps, as may be necessary, desirable or proper to resolve any doubts, difficulties or questions that may arise, whether by reasons of any order of the High Court of Andhra Pradesh or otherwise.

For AUCTUS PHARMA LIMITED

  
Director







Pradesh at Hyderabad or of any directive or order of any other authorities or otherwise, in connection with this Scheme and/or matters concerning or connected therewith.

(d) If any part of this Scheme hereof is ruled illegal or invalid by, or is not sanctioned by, any High Court, or is unenforceable under present or future laws, then it is the intention of the parties that such part shall be severable from the remainder of the Scheme, and the Scheme shall not be affected thereby, unless the deletion of such part shall cause this Scheme to become materially adverse to any party, in which case the parties shall attempt to bring about a modification in the Scheme, as will best preserve for the parties the benefits and obligations of the Scheme, including but not limited to such part.

12. SCHEME CONDITIONAL UPON

This Scheme is conditional upon the following approvals:

- (a). the approval of the Scheme by the requisite majority of the members and creditors, if any, of the Transferor Company, as required under Section 391 of the Act ;
- (b). the sanction of the Scheme by the High Court of Judicature of Andhra Pradesh at Hyderabad under Sections 391 and 394 of the Act and other applicable provisions of the Act, rules and regulations;

13. COSTS, CHARGES AND EXPENSES

Upon the Scheme becoming effective, all costs, charges, taxes including stamp duties, levies and all other expenses, if any, of the Transferor Company and the Transferee Company arising out of/or incurred after the Effective Date for carrying out and implementing the Scheme and matters incidental thereto, shall be borne and paid by the Transferee Company (save as otherwise expressly agreed in writing).

14. SANCTION AND APPROVALS NOT FORTHCOMING

Save and except in respect of any act or deed done prior thereto as is contemplated hereunder, or as to any right, liability or obligation which has arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or as may otherwise arise in law, the Scheme shall stand revoked, cancelled and be of no effect if the events or sanctions and approvals referred to in Clause 11 have not occurred or have not been obtained by 30<sup>th</sup> September, 2014 or such extended period as may be agreed in writing between the each of the Transferor Company and the Transferee Company.

For AUCTUS PHARMA LIMITED

Director

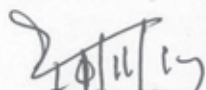


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High Court of Judicature at Hyderabad  
for the State of Telangana and the  
State of Andhra Pradesh

High Court of Judicature at Hyderabad  
for the State of Telangana and the  
State of Andhra Pradesh

CP No. 748 2014  
Application made 23-9- 2014  
Application returned..... 2014  
Application represented..... 2014  
Stamps called for 10-11- 2014  
Stamps deposited 10-11- 2014  
Addl. Stamps called for..... 2014  
Addl. Stamps deposited..... 2014  
Copy ready 10-11- 2014

  
Section Officer



**HIGH COURT OF JUDICATURE AT HYDERABAD  
FOR THE STATE OF TELANGANA AND THE STATE OF ANDHRA PRADESH  
(Original Jurisdiction)**



THURSDAY, THE FIRST DAY OF SEPTEMBER  
TWO THOUSAND AND SIXTEEN

PRESENT  
**THE HON'BLE SRI JUSTICE CHALLA KODANDA RAM**

COMPANY PETITION NO: 231 OF 2016  
CONNECTED WITH  
COMPANY APPLICATION NO: 782 OF 2016

IN THE MATTER OF COMPANIES ACT, 1956 (1 OF 1956)  
AND  
IN THE MATTER OF SECTIONS 391 AND 394 OF THE SAID ACT  
AND  
IN THE MATTER OF M/S. GIL LIFESCIENCES PRIVATE LIMITED  
WITH  
IN THE MATTER OF M/S. GRANULES INDIA LIMITED  
AND  
THEIR RESPECTIVE SHAREHOLDERS

M/s. GIL Lifesciences Private Limited,  
a company incorporated under the Companies Act, 1956 having  
its registered office at Second Floor, Block III, My Home Hub, Madhapur,  
Cyberabad, Hyderabad - 500 081.  
Represented by its Director, Sri V.V.S.Murthy

.....Petitioner/Transferor Company

Petition under Section 391 and 394 of Companies Act, 1956 to Sanction the  
Scheme of Amalgamation of the Companies (Court), Rules, praying

- (a) That the scheme of amalgamation as consented by the shareholders of the Petitioner Company/Transferor Company, a copy of which is filed hereto as Annexure-A5, be sanctioned and confirmed by this Hon'ble High Court so as to be binding on all the members, creditors and employees of the Petitioner Company and all concerned.
- (b) For an order that the Petitioner Company/Transferor Company be dissolved without going through the process of winding up.
- (c) For an order under section 394 of the Act that the Petitioner Company do within 30 days after the date of the orders, cause a certified copy to be delivered to the Registrar of Companies, Andhra Pradesh and Telangana, Hyderabad for registration and on such certified copy being

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delivered or such date as this Hon'ble High Court may deem fit, the Registrar of Companies, Andhra Pradesh and Telangana, Hyderabad shall take all necessary consequential action in respect of the Petitioner Company and also dissolution of the Transferor Company without going through the process of winding up.

- (d) That the parties of the scheme or other persons interested shall be at liberty to apply to this Hon'ble Court for any direction that may be necessary in regard to the carrying out of the scheme of amalgamation.

This Petition coming on for orders upon reading the Company Petition and the affidavit dated: 29.6.2016 and filed by Sri V.V.S.Murthy, Director, GIL Lifesciences Private Limited in support of the Petition and upon perusing the Order of this Court in C.A.No.782 of 2016, dated: 16.6.2016 and the reports of the Regional Director, Ministry, Ministry of Corporate Affairs, Hyderabad and the Official Liquidator and on being satisfied that the hearing of Company Petition has been duly advertised, and upon hearing the arguments of Sri V.S.Raju, Advocate for the Petitioner.

#### **Order Under Section 394**

Upon the above petition coming on for further hearing on 1.9.2016.

#### **THIS COURT DOTH ORDER**

1. That the Company Petition is here by Allowed and this court doth hereby sanction the scheme of amalgamation between M/s. GIL Lifesciences Private Limited (Transferor Company) with M/s. Granules India Limited (Transferee Company as approved by the shareholders of the Petitioner Company/Transferor Company and the Transferee Company, the meeting of Board of Directors of Transferor Company on 27.4.2016 be and hereby is sanctioned and doth hereby declare the same to be binding on all the members, creditors and employees of the Petitioner Company and all concerned.
2. That all the property, rights and powers licenses, approvals and registrations of the Transferor Company specified in the Schedule I and II of the Scheme hereto and all other property, rights and powers

Contd....3





of the Transferor Company be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to Section 394(2) of the Companies Act, 1956, be transferred to and vest in the Transferee Company for all the estate and interest of the Transferor Company therein but subject nevertheless to all charges now affecting the same (other than) and

3. That all the liabilities and duties of the Transferor Company be transferred without further act or deed to the Transferee Company and accordingly the same shall, pursuant to Section 394(2) of the Companies Act, 1956, be transferred to and become the liabilities of the Transferee Company; and
4. That all the legal proceedings now pending by or against the Transferor Company be continued by or against the Transferee Company; and
5. That as per clause 6(1) of the Scheme of Amalgamation, the entire issued and paid-up equity share capital of the Transferor Company is held by the Transferee Company. Accordingly, the shares held by the Transferee Company in the Transferor Company shall, on and from the Effective Date, be cancelled or shall be deemed to have been cancelled without any further act or deed, and accordingly no shares of the Transferee Company shall be issued to the shareholders of the Transferor Company in lieu of the said Amalgamation.

The share or the share certificates of the Transferor Company, in relation to the shares held by its members, shall without any further application, act, instrument or deed, be deemed to have been automatically cancelled and be of no effect on and from the Effective Date.

6. That the Transferor Company and Transferee Company is directed to communicate certified copy of this order to the Registrar of Companies for the State of Telangana and the State of Andhra Pradesh, Hyderabad within 30 days from the date of receipt of a copy of this Order.





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- 7 That the Transferor Company and Transferee Company be and hereby further directed to take all consequential and statutory steps required in pursuance to the approved Scheme of Amalgamation and the Act.
8. That any person interested shall be at liberty to apply to the court in the above matter for any directions that may be necessary.

**SCHEDULE-I:** deals with immoveable properties of Petitioner Transferor Company.

**SCHEDULE-II:** deals with Licenses, Registrations, Approvals on the name of Petitioner Transferor Company.

Dated this First day of September, 2016.

**Note:** Scheme of Amalgamation Enclosed herewith.

Sd/- N.MURALIDHAR RAO  
JOINT REGISTRAR

//TRUE COPY//

SECTION OFFICER

TO

1. Sri V.V.S.Murthy, Director, M/s. GIL Lifesciences Private Limited, Second Floor, Block III, My Home Hub, Madhapur, Cyberabad, Hyderabad - 500 081.
2. The Director, M/s. Granules India Limited, 2<sup>nd</sup> Floor, 3<sup>rd</sup> Block, My Home Hub, Madhapur, Hyderabad - 500 081.
3. The Official Liquidator, High Court of Judicature at Hyderabad for the State of Telangana and the State of Andhra Pradesh, 1<sup>st</sup> Floor, Corporate Bhawan, Nagole, Bandlaguda, Thattianaram Village, Hayatnagar Mandal, Ranga Reddy District, Telangana State, Pin: Code 500 680.
4. The Registrar of Companies, Ministry of Corporate Affairs, Government of India, 2<sup>nd</sup> Floor, Corporate Bhawan, Nagole, Bandlaguda, Thattianaram Village, Hayatnagar Mandal, Ranga Reddy District, Telangana State, Pin: Code 500 680.
5. The Regional Director, South East Region, Ministry of Corporate Affairs, 3<sup>rd</sup> Floor, Corporate Bhawan, Nagole, Bandlaguda, Thattianaram Village, Hayatnagar Mandal, Ranga Reddy District, Telangana State, Pin: Code 500 680.
6. The Section Officer, O.S. Section, High Court of Judicature at Hyderabad for the State of Telangana and the State of Andhra Pradesh.
- 7 One CC to Sri V.S.Raju, Advocate (OPUC)
8. One CC to Sri M.Anil Kumar, Official Liquidator
9. Two CD Copies.

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Copyist Department  
High Court of Judicature at Hyderabad  
for the State of Telangana and the  
State of Andhra Pradesh



**HIGH COURT**

**DATED: 01-09-2016**

**DECREE**

**C.P.NO: 231 OF 2016**

**ORDERING THE C.P.**

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T-2 19/10/2016*

| Court of Judicature at Hyderabad<br>for the State of Telangana and the<br>State of Andhra Pradesh |        |      |
|---------------------------------------------------------------------------------------------------|--------|------|
| CA No.                                                                                            | 631    | 2016 |
| Application made                                                                                  | 3-9-   | 2016 |
| Application returned                                                                              |        | 2016 |
| Application represented                                                                           |        | 2016 |
| Stamps called for                                                                                 | 22-10- | 2016 |
| Stamps deposited                                                                                  | 22-10- | 2016 |
| Addl. Stamps called for                                                                           |        | 2016 |
| Addl. Stamps deposited                                                                            |        | 2016 |
| Copy ready                                                                                        | 22-10- | 2016 |

*M. S. R. D.*  
Section Officer

**SCHEME OF AMALGAMATION  
OF  
GIL LIFESCIENCES PRIVATE LIMITED  
WITH  
GRANULES INDIA LIMITED  
AND  
THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS  
(UNDER SECTIONS 391 TO 394 OF THE COMPANIES ACT, 1956)**



**GENERAL**

**I. PURPOSE OF SCHEME**

This Scheme of Amalgamation provides for the amalgamation of GIL Lifesciences Private Limited (hereinafter referred to as "GILLPL" or "Transferor Company") with Granules India Limited (hereinafter referred to as "GRANULES" or "Transferee Company") pursuant to Sections 391 to 394 and other relevant provisions of the Companies Act, 1956.

**II. RATIONALE FOR THE SCHEME**

The Transferor Company and the Transferee Company are engaged in the business of manufacture and supply of Active Pharmaceutical Ingredients, Pharmaceutical Finished Intermediates and Finished Dosages etc., The Transferor Company is a wholly owned subsidiary of Transferee Company.

The Scheme of Amalgamation will benefit the Transferor Company, the Transferee Company and their respective shareholders. The rationale and reasons for the proposed Scheme of Amalgamation, inter alia, are summarized below:

- Simplify management structure, leading to better administration and a reduction in costs from more focused operational efforts, rationalization, standardization and simplification of business processes, elimination of duplication and rationalization of administrative expenses
- Will result in creation of a single larger unified entity in place of various entities under the same management and control, thus resulting in efficient synergies of operations and streamlined business transactions
- Management and financial resources of transferee company will help the transferor company in setting up the green field manufacturing facility with appropriate international quality standards

In view of the above benefits, the proposed amalgamation would result in an enhanced shareholder value.

**III. PARTS OF THE SCHEME**

The Scheme is divided into following parts:

- (i) **Part A** – dealing with definitions of the terms used in this Scheme of Amalgamation and setting out incorporation details, share capital and objects of the Transferor Company and the Transferee Company;
- (ii) **Part B** – dealing with the transfer and vesting of the Undertaking(s) of the Transferor Company with the Transferee Company;



For GIL Lifesciences Private Limited

*(Signature)*

Director



- (iii) **Part C** – dealing with the accounting treatment for the amalgamation in the books of the Transferee Company; and
- (iv) **Part D** – dealing with the dissolution of the Transferor Company and the general terms and conditions applicable to this Scheme of Amalgamation and other matters consequential and integrally connected thereto.

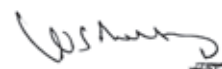
**PART A**  
**DEFINITIONS AND SHARE CAPITAL**

**1. DEFINITIONS**

In this Scheme, unless repugnant to the context, the following expressions shall have the following meanings:

- 1.1 “**Act**” means the Companies Act, 1956 and Companies Act, 2013, to the extent its provisions relevant for this scheme are notified and rules and regulations made thereunder and shall include any statutory modifications, re-enactment or amendment thereof for the time being in force; reference to Sections 391 to 394 of the Companies Act, 1956 shall mean and include reference to any provisions in the Companies Act, 2013 duly notified which replace/ amend/ modify the said provisions.
- 1.2 “**Appointed Date**” means 1<sup>st</sup> April, 2016 or such other date as the Hon’ble High Court or such other authorities may direct.
- 1.3 “**Assets**” shall mean all the business, undertakings, estates, assets, properties, rights, titles and interests of whatsoever nature and kind and wheresoever situate in India and abroad, of the Transferor Company, including but not limited to:
- all assets, movable and immovable, real or personal, in possession or reversion, corporeal or incorporeal, tangible or intangible, freehold or leasehold, fixed or current, including computers and telecommunication equipments, computer hardware, software and programs, plant and machinery, office equipments, furniture and fixtures, vehicles, sundry debtors, cash and bank balances, loans and advances, deposits, buildings, go downs, warehouses, offices, inventories, bills of exchange, peripherals and accessories, receivables, investments, goodwill, investment in shares, debentures, bonds, mutual funds etc.
  - All the registrations, permits, quotas, entitlements, industrial and other licenses, concessions, incentives, subsidies, approvals, authorizations, consents, tenancies, trademarks, patents, copyrights, all intellectual property, rights and licenses there under, technical knowhow, permits, designs, patterns, inventions, leasehold rights, leases, tenancy rights privileges, all other rights, benefits and entitlements including sales tax deferrals and other benefits, lease rights (including the benefit of any applications made therefor) powers and facilities of every kind, nature and description whatsoever, right to use and avail of telephones, telexes, facsimile connections, e-mail connections, communication facilities and installations, utilities, electricity and other services, provisions, funds, benefits of all agreements, contracts and arrangements, benefits under Letter of Credit, Guarantees, Letters of Comforts etc. Issued for the benefit of the Transferor company, benefits under government schemes, deferred tax benefits and other benefits accruing on account of past expenditure and all such other interests/ benefits;
  - All earnest moneys and/ or security deposits;

For **GIL Lifesciences Private Limited**

  
**Director**



- All records, files, papers, engineering and process information, manuals, data, catalogues, quotations, sales and advertising materials, list of present and former customers and suppliers, customers credit information, customer pricing information and all other records pertaining to business.



- 1.4 **"Board of Directors"** or **"Board"** means the Board of Directors of the Transferor Company or the Transferee Company, as the case may be, and shall include a duly constituted committee thereof.
- 1.5 **"Effective Date"** means the last of the dates on which the certified true copies of the order of the Hon'ble High Court of Judicature at Hyderabad for the State of Telangana and the State of Andhra Pradesh, sanctioning the Scheme is filed with the Registrar of Companies, Andhra Pradesh and Telangana at Hyderabad, by the Transferor Company and the Transferee Company (defined hereinafter).
- 1.6 **"High Court"** means the Hon'ble High Court of Judicature at Hyderabad for the State of Telangana and the State of Andhra Pradesh, having jurisdiction in relation to the Transferor Company and the Transferee Company, and shall include the National Company Law Tribunal, if applicable.
- 1.7 **"Liabilities"** shall mean all the debts, secured and unsecured loans, liabilities, responsibilities, obligations, duties of the Transferor Company.
- 1.8 **"GIL LPL" or "Transferor Company"** means GIL Lifesciences Private Limited, a Private limited company incorporated under the Companies Act, 1956, and having its registered office at Second Floor, Block III, My Home Hub, Madhapur, Cyberabad, Hyderabad – 500 081.
- 1.9 **"Scheme" or "the Scheme" or "this Scheme" or "Scheme of Amalgamation"** means this Scheme of Amalgamation in its present form or with any modification(s) made under clause 19 of this Scheme, as approved or directed by the High Court or any other appropriate authority.
- 1.10 **"GRANULES" or "Transferee Company"** means Granules India Limited, a Public Limited company incorporated under the Companies Act, 1956, and having its registered office at 2<sup>nd</sup> Floor, 3<sup>rd</sup> Block, My Home Hub, Madhapur, Hyderabad – 500 081.
- 1.1 **"Undertaking of the Transferor Company"** shall mean and include :-
- 1.1.1 any and all immovable property, including land if any, buildings, movable assets including plant, machinery and equipments, whether leased or otherwise, any and all rights, title, interest, covenant, undertakings, including continuing rights, title and interest in connection with the immovable properties whether leasehold or otherwise comprised in its business together with all present and future liabilities including contingent liabilities and debts appertaining to its business, as per the records of GIL LPL;
- 1.1.2 any other property or assets, real or personal, in possession or reversion, corporeal or incorporeal, tangible or intangible, present or contingent, owned, held, used or otherwise enjoyed by GIL LPL;
- 1.1.3 any and all permits, quotas, rights, approvals, consents, entitlements, licences or any other specific approvals/ permissions obtained from various statutory / Government / Quasi Government agencies which are not mentioned in

For GIL Lifesciences Private Limited

Director.





the said annexure, approvals, tenancies, trademarks, patents, copyrights, privileges and benefits of all contracts, agreements and all other rights, permissions / approvals applied which are under process or to be applied, whether available as on date or vested in future, including lease rights, licences, approvals, exemptions, tax benefits, concessions, subsidies and other beneficial interests, powers and facilities of every kind and description of whatsoever nature, appertaining to its business, as per the records of GIL LPL;

1.1.4 Any and all debts, borrowings and liabilities, present or future, whether secured or unsecured, pertaining to the business, as per the records of GIL LPL;

1.1.5 Any and all permanent, temporary, daily rated, casual and contractual employees of GIL LPL engaged in or in relation to its business at their respective offices, branches, factories, depots or otherwise at their current terms and conditions as per the records of GIL LPL;

1.1.6 Any and all earnest monies and / or security deposits, or other entitlements in connection with or relating to its business, as per the records of GIL LPL;

1.1.7 Any and all investments, current assets, funds, and loans and advances including accrued interest, in connection with or relating to its business, as per the records of GIL LPL; and

1.1.8 All records, files, papers, documents, process information, computer programs, manuals, data, catalogues, quotations, internal control information / material, technical know-how, present and prospective list of customers and suppliers, customer credit information, customer pricing information, books of accounts and other supporting data, documents, invoices etc. and all other records whether in physical or electronic form, pertaining to the business of GIL LPL.

Any reference in the Scheme to "upon the Scheme becoming effective" or "upon the Scheme coming into effect" shall mean the Effective Date.

All terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Act and other applicable laws, rules, regulations, bye-laws, as the case may be or any statutory modification or re-enactment thereof from time to time.

## INCORPORATION, SHARE CAPITAL AND MAIN OBJECTS.

### 2. Transferor Company / GIL LPL

#### a) Incorporation

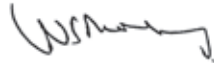
GIL Lifesciences Private Limited / transferor Company was incorporated as a Limited company in then the State of Andhra Pradesh on 19.07.2007 and its Corporate Identity No is U24230TG2007PTC054839.

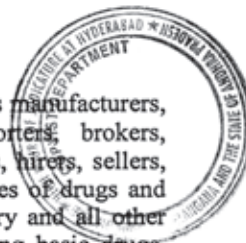
#### b) The Present Share Capital of GIL Lifesciences Private Limited is as under:

| PARTICULARS                                            | AMOUNT IN RUPEES |
|--------------------------------------------------------|------------------|
| <b><u>Authorised:</u></b>                              |                  |
| 1,60,00,000 Equity Shares of Rs 10/- each              | 16,00,00,000     |
| <b><u>Issued, Subscribed and Paid-up:</u></b>          |                  |
| 13,830,614 Equity Shares of Rs 10/- each fully paid-up | 13,83,06,140     |

#### c) The Main Objects of the Transferor Company presently enables it to carry on the business of:

For GIL Lifesciences Private Limited

  
Director



- (i) To engage in and carry on business in India or elsewhere as manufacturers, dealers, distributors, stockists, agents, exporters, importers, brokers, developers, rectifiers, consultants, manipulators, preservers, hirers, sellers, collaborators, processors, developers, converters of all types of drugs and chemicals used in chemical, drug paint, food leather, Dairy and all other types of drugs formulations, medical preparations including basic drugs, formulations, Intermediaries, catalysts and other materials used or useful in Pharmaceutical and drug industry, food, food products, food additives feed supplements, confectioneries, bakery products, dairy products, beverages, food concentrates, cosmetics, toilet preparations, disinfectants surgical dressings and equipments, biological and non-biological, chemical, synthetic and natural raw materials for human, animal and agricultural use.

**3. Transferee Company / GRANULES**

**a) Incorporation**

Granules India Limited / transferee Company / GRANULES was incorporated as a private limited on 18<sup>th</sup> day of March 1991 under Certificate of Incorporation no. 01-12471 of 1990-91. Later on the Company had changed its name to present name i.e. Granules India Limited and fresh certificate of incorporation consequent on change of name was issued by Registrar of Companies, Andhra Pradesh, Hyderabad on 8<sup>th</sup> February, 1993 after complying with the necessary formalities under the Companies Act, 1956.

**b) The Present Share Capital of GRANULES / Transferee Company is as under:-**

| PARTICULARS                                             | AMOUNT IN RUPEES |
|---------------------------------------------------------|------------------|
| <u>Authorized:</u>                                      |                  |
| 34,50,00,000 Equity Shares of Re 1/- each               | 34,50,00,000     |
| <u>Issued, Subscribed and Paid-up:</u>                  |                  |
| 21,67,11,770 Equity Shares of Re 1/- each fully paid-up | 21,67,11,770     |

**c) The Main Objects of GRANULES / The Transferee Company presently enables it to carry on the business of:**

- i) To engage in and carry on business in India or elsewhere as manufacturers, dealers, distributors, stockists, agents, exporters, importers, brokers, developers, rectifiers, consultants, manipulators, preservers, hirers, sellers, collaborators, processors, developers, converters of all types of drugs and chemicals used in chemical, drug paint, food leather, Dairy and all other types of drugs formulations, medical preparations including basic drugs, formulations, Intermediaries, catalysts and other materials used or useful in Pharmaceutical and drug industry, food, food products, food additives feed supplements, confectioneries, bakery products, dairy products, beverages, food concentrates, cosmetics, toilet preparations, disinfectants surgical dressings and equipments, biological and non-biological, chemical, synthetic and natural raw materials for human, animal and agricultural use.

**4. DATE OF TAKING EFFECT AND OPERATIVE DATE**

The Scheme set out herein in its present form or with any modification(s) approved or imposed or directed by the Hon'ble High Court or in terms of this Scheme, shall be effective from the Appointed Date, but shall be operative from the Effective Date.

For GIL Lifesciences Private Limited

Director

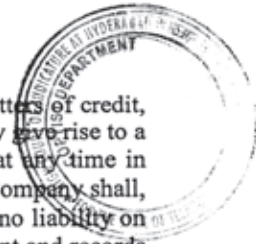


**PART B****TRANSFER AND VESTING OF UNDERTAKING OF THE TRANSFEROR COMPANY WITH THE TRANSFEE COMPANY****5. TRANSFER AND VESTING OF UNDERTAKING**

- 5.1 Subject to the provisions of the Scheme as specified hereinafter and with effect from the Appointed Date, the entire business Undertaking of the Transferor Company, including all debts, liabilities, losses, duties and obligations, including those arising on account of taxation laws and other allied laws of the Transferor Company of every description and also including, without limitation, all the movable and immovable properties (more specifically described under schedule 'I' ) and assets, tangible or intangible assets (whether or not recorded in the books of account of the Transferor Company) of the Transferor Company comprising, amongst others, all freehold land, leasehold land, building, plants, motor vehicles, receivables, actionable claims, furniture and fixtures, computers, office equipment, electrical installations, generators, containers, telephones, telex, facsimile and other communication facilities and business licenses, Factories Act licenses, manufacturing licenses, permits, deposits, authorisations, approvals, insurance cover of every description, lease, tenancy rights, permissions, incentives, if any, and all other rights, patents, know-how, trademark, service mark, trade secrets, brands, registrations, licenses, (more specifically described under schedule 'II' ) marketing authorisations and other intellectual property rights, proprietary rights, title, interest, contracts, deeds, bonds, consents, approvals and rights and powers of every kind, nature and description whatsoever, privileges, liberties, easements, advantages and benefits, approvals, shall, under the provisions of Sections 391 to 394 of the Act, and pursuant to the order of the High Court sanctioning this Scheme and without further act, instrument or deed, but subject to the charges affecting the same as on the Effective Date, be transferred and/or deemed to be transferred to and vested in the Transferee Company, so as to become the properties, assets, rights, business and Undertaking of the Transferee Company.
- 5.2 Without prejudice to the generality of clause 5.1 above, with respect to the assets of the Transferor Company, including cash and bank balances, as are movable in nature or are otherwise capable of transfer by manual delivery, by paying over or by endorsement and delivery or otherwise, the same shall be so transferred by the Transferor Company to the Transferee Company, without requiring any deed or instrument of conveyance for the same and shall become the property of the Transferee Company as an integral part of the assets of the Transferee Company, with effect from the Appointed Date.
- 5.3 Without prejudice to the generality of clause 5.1 above, with effect from the Appointed Date, all debts, liabilities, duties and obligations of the Transferor Company as on the Appointed Date whether provided for or not in the books of account of the Transferor Company and all other liabilities which may accrue or arise after the Appointed Date but which relate to the period on or up to the day of the Appointed Date, shall be the debts, liabilities, duties and obligations of the Transferee Company including any encumbrance on the assets of the Transferor Company or on any income earned from those assets.
- 5.4 With effect from the Appointed Date, all inter-party transactions between the Transferor Company and the Transferee Company shall be considered as intra-party transactions for all purposes.

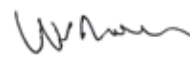
For GL Lifesciences Private Limited

  
**Director**



- 5.5 Loans, advances and other obligations (including any guarantees, letters of credit, letters of comfort or any other instrument or arrangement which may give rise to a contingent liability in whatever form), if any, due or which may at any time in future become due by the Transferor Company and the Transferee Company shall, *ipso facto*, stand discharged and come to an end and there shall be no liability on any party and appropriate effect shall be given in the books of account and records of the Transferee Company. It is hereby clarified that there will be no accrual of interest or other charges in respect of any inter-company loans, advances and other obligations by the Transferor Company and the Transferee Company, with effect from the Appointed Date.
- 5.6 All existing securities, mortgages, charges, liens or other encumbrances, if any, as on the Appointed Date and created by the Transferor Company after the Appointed Date, over the properties and other assets comprised in the Undertaking or any part thereof transferred to the Transferee Company by virtue of this Scheme and in so far as such securities, mortgages, charges, liens or other encumbrances secure or relate to liabilities of the Transferor Company, the same shall, after the Effective Date, continue to relate and attach to such assets or any part thereof to which they are related or attached prior to the Effective Date and as are transferred to the Transferee Company, and such securities, mortgages, charges, liens or encumbrances shall not relate or attach to any of the other assets of the Transferee Company, provided however that no encumbrances shall have been created by the Transferor Company over its assets after the date of filing of the Scheme without the prior written consent of the Board of Directors of the Transferee Company, except for those done in the normal course of business.
- 5.7 The existing encumbrances if any over the properties and other assets of the Transferee Company or any part thereof which relate to the liabilities and obligations of the Transferee Company prior to the Effective Date shall continue to relate only to such assets and properties and shall not extend or attach to any of the assets and properties of the Transferor Company transferred to and vested in the Transferee Company by virtue of this Scheme.
- 5.8 It is expressly provided that, save as herein provided, no other term or condition of the liabilities transferred to the Transferee Company is modified by virtue of this Scheme except to the extent that such amendment is required statutorily or by necessary implication.
- 5.9 With effect from the Appointed Date, all contracts, statutory licences, registrations, incentives, tax deferrals and benefits, carry-forward of tax losses, tax credits, tax refunds, subsidies, concessions, grants, rights, claims, leases, tenancy rights, liberties, permissions, approvals or consents to carry on the operations of the Transferor Company, special status and other benefits or privileges enjoyed or conferred upon or held or availed of by the Transferor Company and all rights and benefits that have accrued or which may accrue to the Transferor Company, whether before or after the Appointed Date shall stand vested in or transferred to the Transferee Company, pursuant to the Scheme, without any further act or deed and shall remain valid, effective and enforceable on the same terms and conditions and shall be appropriately mutated by the statutory authorities concerned in favour of the Transferee Company upon the vesting and transfer of the Undertaking of the Transferor Company pursuant to this Scheme.
- 5.10 The amalgamation of the Transferor Company with the Transferee Company, pursuant to and in accordance with this Scheme, shall take place with effect from the Appointed Date and shall be in accordance with Section 2(1B) of the Income-Tax Act, 1961. If any terms or provisions of the Scheme is/ are inconsistent with the provisions of section 2(1B) of the Income Tax Act, 1961, the

For GIL Lifesciences Private Limited

  
Director





provisions of Section 2(1B) shall prevail and the Scheme shall stand modified to the extent necessary to comply with such provisions. Such modifications will however not affect the other parts of the Scheme.

## 6. CONSIDERATION

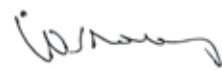
- 6.1 The entire issued and paid-up equity share capital of the Transferor Company is held by the Transferee Company. Accordingly, the shares held by the Transferee Company in the Transferor Company shall, on and from the Effective Date, be cancelled or shall be deemed to have been cancelled without any further act or deed, and accordingly no shares of the Transferee Company shall be issued to the shareholders of the Transferor Company in lieu of the said amalgamation.
- 6.2 The shares or the share certificates of the Transferor Company, in relation to the shares held by its members, shall without any further application, act, instrument or deed, be deemed to have been automatically cancelled and be of no effect on and from the Effective Date.

## 7. INCREASE IN AUTHORISED CAPITAL OF TRANSFEE COMPANY

- 7.1 Upon the Scheme coming into effect, the authorised share capital of the Transferee Company in terms of its Memorandum of Association and Articles of Association shall automatically stand enhanced without any further act, instrument or deed on the part of the Transferee Company, including without payment of stamp duty and fees payable to the Registrar of Companies, by an amount of Rs.16,00,00,000 (Rupees Sixteen Crores Only), and the provisions in the Memorandum of Association and Articles of Association of the Transferee Company (relating to the authorised share capital) shall, without any further act, instrument or deed, be and stand altered, modified and amended, and the consent of the shareholders to the Scheme shall be deemed to be sufficient for the purposes of effecting this amendment, and no further resolution(s) under Section 13, Section 14, Section 61 of the Companies Act, 2013 or any other applicable provisions of the Act, would be required to be separately passed. For this purpose, the filing fees and stamp duty already paid by the Transferor Company on their authorised share capital shall be utilized and applied to the increased authorised equity share capital of the Transferee Company, and shall be deemed to have been so paid by the Transferee Company on such combined authorised share capital and accordingly, the Transferee Company shall not be required to pay any fees/ stamp duty on the authorised share capital so increased.
- 7.2 Accordingly, in terms of this Scheme, the authorised share capital of the Transferee Company shall stand enhanced to an amount of Rs. 50,50,00,000 (Rupees Fifty Crores Fifty Lakhs Only), divided into 50,50,00,000 (Fifty Crores fifty lakhs) equity shares of Rs. 1/- each and the capital clause being Clause V of the Memorandum of Association of the Transferee Company shall stand substituted to read as follows:

The Authorized Share Capital of the Company is Rs. 50,50,00,000/- (Rupees Fifty Crores Fifty Lakhs Only) divided into 50,50,00,000 (Fifty Crores Fifty Lakhs Only) Equity Shares of Re.1/-(Rupee One Only) each. The Equity shares shall have the rights, privileges and conditions attaching thereto as are provided by the regulations of the Company for the time being, with power to increase and reduce the capital of the Company and to divide the shares in the capital for the time being into several classes and to attach thereto respectively such preferential rights, privileges or conditions as may be determined by or in accordance with the regulation of the Company and to vary, modify or abrogate any such rights,

For GIL Lifesciences Private Limited

  
Director



privileges or conditions in such manner as may for the time being be provided by the regulations of the Company.



## 8. STAFF, WORKMEN AND EMPLOYEES

- 8.1 Upon the Scheme becoming effective, all staff, workmen and employees of the Transferor Company in service on the Effective Date shall be deemed to have become staff, workmen and employees of the Transferee Company with effect from the Appointed Date or the date of joining whichever is later, without any break or interruption in their service and on the basis of continuity of service, and the terms and conditions of their employment with the Transferee Company (i.e. cost-to-company basis, in monetary terms) shall not be less favourable than those applicable to them with reference to their employment with the Transferor Company on the Effective Date.
- 8.2 It is expressly provided that, on the Scheme becoming effective, the provident fund, gratuity fund, superannuation fund or any other special fund or trusts, if any, created or existing for the benefit of the staff, workmen and employees of the Transferor Company shall become trusts/ funds of the Transferee Company for all purposes whatsoever in relation to the administration or operation of such fund or funds or in relation to the obligation to make contributions to the said fund or funds in accordance with the provisions thereof as per the terms provided in the respective trust deeds, if any, to the end and intent that all rights, duties, powers and obligations of the Transferor Company in relation to such fund or funds shall become those of the Transferee Company. It is clarified that, for the purpose of the said fund or funds, the services of the staff, workmen and employees of the Transferor Company will be treated as having been continuous with the Transferee Company from the date of employment as reflected in the records of the Transferor Company.

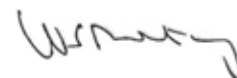
## 9. LEGAL PROCEEDINGS

- 9.1 If any suit, appeal or other proceeding of whatever nature by or against the Transferor Company is pending, including those arising on account of taxation laws and other allied laws, the same shall not abate or be discontinued or in any way be prejudicially affected by reason of the arrangement by anything contained in this Scheme, but the said suit, appeal or other legal proceedings may be continued, prosecuted and enforced by or against the Transferee Company, in the same manner and to the same extent as it would or might have been continued, prosecuted and enforced by or against the Transferor Company, as if this Scheme had not been made.
- 9.2 On and from the Effective Date, Transferee Company may, if required, initiate or defend any legal proceedings in relation to the rights, title, interest, obligations or liabilities of any nature whatsoever, whether under contract or law or otherwise, of Transferor Company and to the same extent as would or might have been initiated by or defended by Transferor Company.

## 10. POWER TO GIVE EFFECT TO THIS PART

The Transferee Company shall enter into and/ or issue and/ or execute deeds, writings or confirmations or enter into any tripartite arrangements, confirmations or novations, to which the Transferor Company will, if necessary, also be party in order to give formal effect to the provisions of this Scheme, if so required. Further, the Transferee Company shall be deemed to be authorised to execute any such deeds, writings or confirmations on behalf of the Transferor Company and to implement or carry out all formalities required on the part of the Transferor Company to give effect to the provisions of this Scheme.

For GIL Lifesciences Private Limited

  
Director



## 11. TAXATION MATTERS

- 11.1 Upon the Scheme becoming effective, all taxes payable by the Transferor Company under the Income-tax Act, 1961, Customs Act, 1962, Central Excise Act, 1944, State Sales Tax laws, Central Sales Tax Act, 1956 or other applicable laws/ regulations dealing with taxes/ duties/ levies (hereinafter referred to as "Tax Laws") shall be to the account of the Transferee Company; similarly all credits for tax deduction at source on income of the Transferor Company, or obligation for deduction of tax at source on any payment made by or to be made by the Transferor Company shall be made or deemed to have been made and duly complied with by the Transferee Company if so made by the Transferor Company. Similarly any advance tax payment required to be made for by the specified due dates in the Tax Laws shall also be deemed to have been made by the Transferee Company if so made by the Transferor Company. Further, the Minimum Alternate Tax paid by the Transferor Company under Section 115 JB and/ or other provisions (as applicable) of the Income-tax Act, 1961, shall be deemed to have been paid on behalf of the Transferee Company, and the Minimum Alternate Tax credit (if any) of the Transferor Company as on the Appointed Date or accruing after the Appointed Date shall stand transferred to the Transferee Company and such credit would be available for set-off against the tax liabilities of the Transferee Company. Any refunds under the Tax Laws due to the Transferor Company consequent to the assessments made on the Transferor Company and for which no credit is taken in the accounts as on the date immediately preceding the Appointed Date shall also belong to and be received by the Transferee Company
- 11.2 All taxes of any nature, duties, cesses or any other like payments or deductions made by the Transferor Company or any of its agents to any statutory authorities such as income tax, sales tax, and service tax, or any tax deduction/ collection at source, tax credits under Tax Laws, relating to the period after the Appointed Date shall be deemed to have been on account of or paid by the Transferee Company, and the relevant authorities shall be bound to transfer to the account of and give credit for the same to the Transferee Company upon the Effective Date and upon relevant proof and documents being provided to the said authorities.
- 11.3 All cheques and other negotiable instruments and payment orders received in the name of the Transferor Company after the Effective Date shall be accepted by the bankers of the Transferee Company and credited to the account of the Transferee Company. Similarly, the banker of the Transferee Company shall honour cheques issued by the Transferor Company for payment on or after the Appointed Date and presented after the Effective Date.

## 12. CONTRACTS, DEEDS AND INSTRUMENTS

Subject to the other provisions of the Scheme, all contracts, including contracts for all tenancies and licenses, rentals, deeds, bonds, agreements, bonds, Lease deeds, Rental Agreements, Agreements of any and all usage, business purchase agreements, schemes, Trade Marks, exemption schemes, Memorandum of Understanding or memoranda of agreement, memoranda of agreed prints, letters of agreed points, character merchandising licenses, technology transfer agreements, distribution licenses and agreements, usage agreements, arrangements, undertakings whether written or otherwise and other instruments if any, of what so ever nature to which the Transferor Company is a party, or the benefits to which the Transferor Company is entitled, or subsisting or operative immediately on or before the effective date shall be in full force and effective against or in favour of

For GIL Lifesciences Private Limited..

  
Director



the Transferee Company and may be enforced as fully and effectively as it would be against or for the Transferor Company and the Transferee Company, shall enter into and / or issue and / or execute deeds, or bonds in writing or confirm in writing or enter into tripartite agreements, confirmations or notations to which the Transferor Company is a party, to give full effect and formal authenticity to the provisions of this Scheme, if so required or becomes necessary. Further, the Transferee Company shall be deemed to be authorized to execute any such deeds, writings, or confirmations on behalf of the Transferor Company and to implement or carry out all the formalities and obligations required on the part of the Transferor Company to give effect to the provisions of this Scheme.

For ~~GIL~~ Lifesciences Private Limited

A handwritten signature in black ink, appearing to read "W. Sharma".

Director



**PART C****ACCOUNTING TREATMENT FOR THE AMALGAMATION  
IN THE BOOKS OF THE TRANSFeree COMPANY****13. ACCOUNTING TREATMENT IN THE BOOKS OF TRANSFeree  
COMPANY**

On the Scheme becoming effective, the accounting for the amalgamation would be done in accordance with the "Purchase Method" referred in Accounting Standard 14 – Accounting for Amalgamation (AS 14) issued by the Institute of Chartered Accountants of India and notified by the National Advisory Committee on Accounting Standards, Ministry of Corporate Affairs, as amended from time to time, which *inter alia* provides for the following:

- 13.1 With effect from the Appointed Date, all the assets and liabilities appearing in the books of accounts of Transferor Company shall stand transferred to and vested in the Transferee Company, as the case may be pursuant to the Scheme and shall be recorded by Transferee Company at their respective fair values.
- 13.2 The carrying amount of investments in the shares of the Transferor Company to the extent held by the Transferee Company, shall stand cancelled in the books of the Transferee Company, without any further act or deed.
- 13.3 The reserves (whether capital or revenue or on revaluation) of the Transferor Company, other than the statutory reserves should not be recorded in the Financial Statements of the Transferee Company. Where the statutory reserve is transferred and recorded, corresponding debit should be given to a suitable account head (e.g. Amalgamation Adjustment Account) which should be disclosed as a part of 'miscellaneous expenditure' or other similar category in the balance sheet. When the identity of the statutory reserves is no longer required to be maintained, both the reserves and the aforesaid account should be reversed.
- 13.4 In case of any differences in accounting policies between the Transferor Company and the Transferee Company, the accounting policies followed by the Transferee Company shall prevail to ensure that the Financial Statements reflect the financial position on the basis of consistent accounting policies.
- 13.5 The amount of any inter-company balances, amounts between the Transferor Company and the Transferee Company, appearing in the Financial Statements of the respective companies, shall stand cancelled without any further act or deed, upon the Scheme coming into effect, and the amounts so cancelled shall not be recorded in the Financial Statements of the Transferee Company.
- 13.6 The surplus arising between (A) the aggregate values of assets of the Transferor Company acquired and recorded by the Transferee Company in terms of clause 13.1 or cancelled in terms of clause 13.2 and 13.5 after making necessary adjustments as per clause 13.4, and (B) the aggregate of (a) the liabilities of the Transferor Company acquired and recorded by the Transferee Company in terms of clause 13.1 or cancelled in terms of clause 13.5 after making necessary adjustments as per clause 13.4, and (b) reserves of the Transferor Company recorded by the Transferee Company as per clause 13.3, shall be credited to the Capital Reserve Account of the Transferee Company. In case of a deficit, as computed above, such deficit shall be debited to Goodwill.

**14. TRANSACTIONS BETWEEN THE APPOINTED DATE AND THE  
EFFECTIVE DATE**

For GIL Lifesciences Private Limited

Director



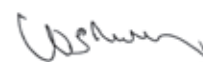
During the period from the Appointed Date to the Effective Date:

- 14.1 The Transferor Company shall carry on and be deemed to have carried on their respective business and activities and shall be deemed to have held and stood possessed of and shall hold and stand possessed of their respective businesses and Undertaking for and on account of and in trust for the Transferee Company;
- 14.2 The Transferor Company shall carry on their respective business and activities in the ordinary course of business with reasonable diligence and business prudence;
- 14.3 With effect from the Appointed Date and up to and including the Effective Date, Transferor Company shall not, without the written consent of Transferee Company, undertake any new business;
- 14.4 With effect from Appointed Date and up to and including the Effective Date, Transferor Company shall not sell, transfer or alienate, charge, mortgage or encumber or otherwise deal with or dispose of any of its Undertaking or any part thereof save and except in each case:
  - (a) if the same is in the ordinary course of business of Transferor Company as carried on by them as on the date of filing this Scheme with the High Court; or
  - (b) if the same is expressly permitted by this Scheme; or
  - (c) if the prior written consent of the Board of Directors of Transferee Company has been obtained.
- 14.5 All the profits or income accruing or arising to the Transferor Company or expenditure or losses incurred or arising to the Transferor Company, shall for all purposes be treated and deemed to be and accrue as the profits or income or expenditure or losses (as the case may be) of the Transferee Company; and
- 14.6 The Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to the Central Government and all other Government Authorities/ agencies concerned, as are necessary under any law for such consents, approvals and sanctions which the Transferee Company may require to carry on the business of the Transferor Company.

15. **SAVING OF CONCLUDED TRANSACTIONS**

Subject to the terms of this Scheme, the transfer and vesting of the Undertaking(s) of the Transferor Company under Clause 5 of this Scheme shall not affect any transactions or proceedings already concluded by the Transferor Company on or before the Appointed Date or concluded after the Appointed Date and the Effective Date (both days inclusive), to the end and intent that the Transferee Company accepts and adopts all acts, deeds and things made, done and executed by the Transferor Company as acts, deeds and things made, done and executed by or on behalf of the Transferee Company.

For **GIL Lifesciences Private Limited**

  
**Director**





## PART D

### DISSOLUTION OF THE TRANSFEROR COMPANY AND THE GENERAL TERMS AND CONDITIONS APPLICABLE TO THIS SCHEME OF AMALGAMATION AND OTHER MATTERS CONSEQUENTIAL AND INTEGRALLY CONNECTED THERETO

#### 16. WINDING UP

On the Scheme becoming effective, the Transferor Company shall stand dissolved, without going through the process of winding up and without further acts and deeds by parties on such terms and conditions as the High Court may direct or determine.

#### 17. CONDITIONALITY OF THE SCHEME

This Scheme is and shall be conditional upon and subject to:

- (i) Approval by the Hon'ble High Court;
- (ii) The certified copy of the order of the High Court sanctioning the Scheme being filed with the Registrar of Companies by the Transferor Company and the Transferee Company; and
- (iii) Compliance with such other conditions as may be imposed by the High Court.

#### 18. APPLICATION TO THE HIGH COURT

The Transferor Company being a wholly owned subsidiary of the Transferee Company, the Transferor Company shall alone, with all reasonable despatch, make and file an Application/ Petition to the High Court, within whose jurisdiction the registered office of the Transferor Company is situated, for sanctioning the Scheme, and for dissolution of the Transferor Company without being wound-up.

#### 19. MODIFICATION OR AMENDMENTS TO THE SCHEME

The Transferor Company and the Transferee Company by their respective Board of Directors, or any person(s) or committee authorised/ appointed by them, may carry out or assent to any modifications/ amendments to the Scheme or to any conditions or limitations that the High Court and/ or any other Government Authority may deem fit, to direct or impose or which may otherwise be considered necessary, desirable or appropriate by them (i.e., the Board of Directors or the person(s)/ committee). The Transferor Company and the Transferee Company by their respective Board of Directors, or any person(s) or committee authorised/ appointed by them, shall be authorised to take all such steps as may be necessary, desirable or proper to resolve any doubts, difficulties or questions whether by reason of any directive or orders of any Government/ regulatory Authorities or otherwise howsoever arising out of or under or by virtue of the Scheme and/ or any matter concerned or connected therewith.

#### 20. EFFECT OF NON-RECEIPT OF APPROVALS

In the event, any of the approvals or conditions enumerated in the Scheme not being obtained or complied with, or for any other reason, the Scheme cannot be implemented, the Board of Directors of the Transferor Company and the Transferee Company shall by mutual agreement waive such conditions as they consider appropriate to give effect, as far as possible, to this Scheme and failing such mutual

For GIL Lifesciences Private Limited

*W. Manoj*  
Director



agreement, or in case the Scheme is not sanctioned by the High Court, the Scheme shall become null and void and each party shall bear and pay their respective costs, charges and expenses in connection with the Scheme.

**21 POWER TO WITHDRAW THE SCHEME AT ANYTIME**

In the event of any condition or amendment or modification that may be imposed by the High Court or any competent authority, or if the Board of Directors of the Transferor Company or the Board of Directors of the Transferee Company, may find it unacceptable for any reason or if the Board of Directors of the said Transferor Company or Transferee Company decides, they shall be at a liberty to withdraw from the Scheme unconditionally.

**22. COSTS, CHARGES AND EXPENSES**

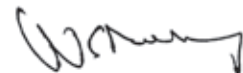
In the event of the Scheme being sanctioned by the High Court, the Transferee Company shall bear and pay all costs, charges, expenses and taxes, including duties and levies in connection with the Scheme. The Transferor Company is a wholly owned subsidiary of the Transferee Company and no shares would be issued by the Transferee Company to the shareholders of the Transferor Company as mentioned in clause 6 of the scheme. Hence, Schedule 1A, Article 20(d) of Indian Stamp Act, as applicable to the State of Telangana is not applicable and accordingly no stamp duty is payable by the Transferee Company for merger of the Transferor Company with the Transferee Company.

**23 MISCELLANEOUS**

In case of any doubt or difference or issue shall arise among the Transferor Company and the Transferee Company or any of their shareholders, creditors, employees and/ or persons entitled to or claiming any right to any shares in the Transferor Company or the Transferee Company, as to the construction of this Scheme or as to any account, valuation or apportionment to be taken or made in connection herewith or as to any other aspects contained in or relating to or arising out of this Scheme, the same shall be amicably settled between the Board of Directors of the Transferor Company and the Transferee Company, and the decision arrived at therein shall be final and binding on all concerned.

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For GIL Lifesciences Private Limited

  
Director

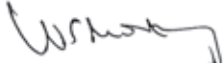
**Schedule I**

(This Schedule forms an Integral Part of the Scheme of Amalgamation of GIL Lifesciences Private Limited with Granules India Limited and their respective shareholders and Creditors)

**Immovable properties of M/s. GIL Lifesciences Private Limited**

| Sl. No | Land Details                                                                                                                                                                                                                                                                                                                                                                                                                                                | Regd. Sale Deed & Document no.                                               |
|--------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------|
|        | <p>All that the land totally admeasuring 18.35 acres equivalent 74,262.45 sq.mts situated in plot no. 30 under survey nos. part of 27 &amp; 1 of Thanam, part of 12 &amp; 5 of Ponnuru &amp; 8,9,29,30,31,32 &amp; 33 of E-Bonangi revenue villages of Parawada Mandal, Visakhapatnam District in the state of Andhra Pradesh and bounded By:</p> <p>NORTH - 30 M Wide Road<br/>SOUTH : 22 M Wide Road<br/>EAST - Plot No. 31<br/>WEST -30 M Wide Road.</p> | <p>535 of 2008<br/>Registered at Sub<br/>Registrar,<br/>Lankelapalem, AP</p> |

For GIL Lifesciences Private Limited

  
Director

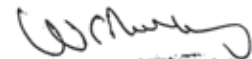


(This Schedule forms an Integral Part of the Scheme of Amalgamation of GIL Lifesciences Private Limited with Granules India Limited and their respective shareholders and Creditors)

(i) Statutory Licenses, Registrations, approvals on the name of GIL Lifesciences Private Limited

| Sl.No | Name of the Issuing Authority                                                  | Description                                  | Number                                        | Date                       |
|-------|--------------------------------------------------------------------------------|----------------------------------------------|-----------------------------------------------|----------------------------|
| 1     | Government of Andhra Pradesh Commercial Taxes Department                       | VAT & CST Registrations                      | 37820537600                                   | 15.06.2015                 |
| 2     | Central Board of Excise and Customs                                            | Central Excise and Service Tax Registrations | AADCG0605MEM001<br>ADCG0605MSD001             | 09.07.2015 &<br>10.07.2015 |
| 3     | Government of India Income-Tax Department                                      | PAN Number                                   | AADCG0605M                                    | 19.07.2007                 |
| 4     | Government of Andhra Pradesh State Disaster Response & Fire Service Department | Fire NOC                                     | 1824/G1/2015                                  | 20.04.2016                 |
| 5     | Ministry of Commerce and Industry                                              | IEM                                          | 851/SIA/IMO/2015                              | 09.08.2015                 |
| 6     | Government of Andhra Pradesh, Labour Department                                | Integrated Labour License                    | AP-03-32-012-0212196                          | 09.04.2016                 |
| 7     | APEPDCL                                                                        | Power Connection                             | Lr.No.SE/O/VSP/ADE/Coml/F.HT.Doc/D.No.2383/15 | 26.08.2015                 |
| 8     | INS DEGA                                                                       | NOC                                          | Applied for                                   |                            |
| 9     | APIIC                                                                          | For approval of drawing                      | Applied for                                   |                            |

For GIL Lifesciences Private Limited

  
Director

  
SUPERINTENDENT  
Copyist Department  
High Court of Judicature at Hyderabad  
for the State of Telangana and the  
State of Andhra Pradesh



**Court of Judicature at Hyderabad  
for the State of Telangana and the  
State of Andhra Pradesh**

CA No. 631 2016

Application made 3-9- 2016

Application returned ..... 2016

Application represented ..... 2016

Stamps called for 22-10- 2016

Stamps deposited 22-10- 2016

Addl. Stamps called for ..... 2016

Addl. Stamps deposited ..... 2016

Copy ready 22-10- 2016

*[Handwritten Signature]*

Section Officer